



CHAPTER xlvi

An Act to amend the constitution of the River Dart Navigation Commissioners, to make provision with respect to the rates, rents and charges leviable by the Commissioners, to confer upon the Commissioners additional powers, to amend the statutory powers of the Commissioners; and for other purposes.

[1st August, 1962.]

WHEREAS—

(1) By an Act passed in the year eighteen hundred and thirty-four intituled “ An Act for deepening, extending, and improving the Navigation of the River Dart from Totnes Bridge to Langham Wood Point in the County of Devon ” (hereinafter referred to as “ the Act of 1834 ”) commissioners (hereinafter referred to as “ the commissioners of 1834 ”) were appointed for carrying the said Act into execution:

(2) The commissioners of 1834 now consist of twenty-seven members of whom three are perpetual members, three are ex officio members and twenty-one are members appointed by ballot at public meetings of the burgesses of the borough of Totnes:

(3) It is expedient to make provision for the alteration of the constitution of the commissioners of 1834 and that the commissioners of 1834 should be incorporated as in this Act provided:

(4) There is no authority responsible for maintaining a navigable channel in and otherwise controlling that part of the river Dart which lies between Langham Wood Point and Dittisham in the county of Devon and it is expedient that the Commissioners as so incorporated (hereinafter referred to as "the Commissioners") should assume responsibility therefor and that the limits within which the commissioners of 1834 have authority should be extended as in this Act provided:

(5) The cost of deepening, extending and improving the said navigation and keeping the same navigable for shipping exceeds the revenue derived by the commissioners of 1834 from the rates and tolls on vessels, animals and goods and other charges leviable by the commissioners of 1834 in pursuance of the Act of 1834 and it is expedient that such rates, tolls and charges should be amended and increased and that the Commissioners should be empowered to levy rates and tolls in respect of passenger vessels and the use of moorings and that further provision as in this Act contained should be made with respect to rates, tolls and charges and that the county council of the administrative county of Devon, the mayor, aldermen and burgesses of the borough of Totnes and the Totnes Rural District Council should contribute to the revenues of the Commissioners as in this Act provided:

(6) By the Act of 1834 the commissioners of 1834 were authorised to borrow upon credit or by way of mortgage of the said navigation and the tolls, rates and duties arising therefrom sums not exceeding twenty thousand pounds and the commissioners of 1834 have fully exercised such powers:

(7) It is expedient to empower the Commissioners to raise further moneys for the purposes of their undertaking and to make further provision with respect to their finances:

(8) It is expedient that further powers should be conferred on the Commissioners with respect to the regulation, improvement and use of the said river Dart between Totnes Weir and Dittisham and with respect to the preservation of the natural beauty thereof:

(9) It is expedient that the other powers in this Act contained should be conferred on the Commissioners:

(10) It is expedient that the other provisions of this Act be enacted:

(11) Many of the provisions of the Act of 1834 no longer have practical effect and it is expedient that that Act should be repealed:

(12) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

1. This Act may be cited as the River Dart Navigation Act, Short title. 1962.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Constitution, appointment and election of Commissioners.

Part III.—Limits of navigation and powers of Commissioners.

Part IV.—Financial.

Part V.—Rates and charges.

Part VI.—Miscellaneous.

3.—(1) The following Acts (so far as the same are applicable Incorporation for the purposes and are not inconsistent with the provisions of of Acts. this Act) are hereby incorporated with this Act, namely:—

(a) the Lands Clauses Acts (except sections 127 to 132 and 150 and 151 of the Lands Clauses Consolidation Act, 1845:

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act, 1845, shall be sufficient without the addition of the sureties mentioned in that section;

(b) the Commissioners Clauses Act, 1847, except sections 6 to 10, sections 16 to 33, section 84 and sections 92 to 98;

(c) the provisions of section 14 (Undertakers to erect watch-house and boathouse for custom house officers and keep the same in repair), section 15 (Penalty on undertakers neglecting to repair watchhouse &c.), section 25 (Rates not to be taken until the works shall be completed), section 26 (Certificate of magistrate to be evidence that the harbour &c. is completed), section 27 (Tonnage of British registered vessels to be ascertained according to law; of other vessels according to established rules), section 29 (Vessels returning from stress of weather not to pay rates again), section 30 (Power to vary the rates from time to time), section 33 (Harbour dock and pier

PART I
—cont.

free to the public on payment of rate), sections 34 to 48 (with respect to the collection of rates), sections 51 to 65 (with respect to the appointment of harbour masters, dock masters and pier masters and their duties), section 77 (Power to erect lighthouses and lay down buoys with consent of Trinity House), section 78 (Lights, beacons, or sea-marks not to be exhibited or altered without sanction of Trinity House), section 83 (Byelaws may be made for all or any of the purposes herein named) and section 100 (Saving as to rights of Crown as to revenue &c.) of the Harbours Clauses Act, 1847.

(2) The provisions of section 28 (Exemption of vessels in Her Majesty's or the public service from rates) of the Harbours Clauses Act, 1847, as amended by subsection (2) of section 31 of the Post Office Act, 1953, are hereby incorporated with this Act.

(3) In construing the provisions of the Harbours Clauses Act, 1847, incorporated with this Act—

- (i) the expression "the harbour, dock and pier" shall mean the navigation as defined in this Act;
- (ii) the expression "the undertakers" shall mean the Commissioners;
- (iii) the expression "the prescribed limits" shall mean the navigation; and
- (iv) the expression "the special Act" shall mean this Act:

Provided also that nothing in the said Act shall require or authorise the harbour master or any other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever in the structure or equipment of a seaplane.

Interpretation.

4. In this Act unless there be something in the subject or context repugnant to such construction—

"the Act of 1834" means the Act passed in the year eighteen hundred and thirty-four intituled "An Act for deepening, extending, and improving the Navigation of the River Dart from Totnes Bridge to Langham Wood Point in the County of Devon";

"authorised rates" means the rates which the Commissioners are for the time being authorised to demand, receive and recover in pursuance of this Act;

"the chamber of shipping" means the Chamber of Shipping of the United Kingdom;

"the clerk" means the clerk to the Commissioners;

- “the Commissioners” means the River Dart Navigation Commissioners incorporated by this Act;
- “the commissioners of 1834” means the commissioners for carrying the Act of 1834 into execution;
- “the county council” means the county council of the administrative county of Devon;
- “the Dartmouth Corporation” means the mayor, aldermen and burgesses of the borough of Clifton-Dartmouth-Hardness commonly called “Dartmouth”;
- “the Dartmouth Council” means the council of the Dartmouth Corporation;
- “the district council” means the rural district council of Totnes;
- “the commercial members”, “the passenger members”, “the frontage members” and “the boating members” mean respectively the commissioners from time to time elected in accordance with the provisions of this Act by the persons by this Act qualified to elect the commercial members, the passenger members, the frontage members and the boating members respectively;
- “the Harbours Clauses Act, 1847” means the Harbours, Docks and Piers Clauses Act, 1847;
- “hover vehicle” means a vehicle designed to be supported on a cushion of air;
- “the Lands Clauses Acts” means the Lands Clauses Acts as modified by the Land Compensation Act, 1961, and by this Act;
- “local boating club” means a boating club or sailing club having a clubhouse or other premises situate on or within one mile of the banks of the navigation and having a membership of not less than twelve persons;
- “master” where used with reference to a vessel includes the owner of, and agent or broker for, the vessel and any charterer to whom the vessel is demised;
- “the Minister” means the Minister of Transport;
- “the navigation” means so much of the river and its tributaries as are situate within the limits defined in section 32 (Limits of navigation) of this Act;
- “owner” where used with reference to goods includes the consignor, consignee, importer, shipper, exporter, receiver, broker or agent for sale or custody of the goods;
- “passenger boat” means a vessel used to carry passengers for hire or reward;

PART I
—cont.

- “ the principal office ” means the principal office for the time being of the Commissioners;
- “ the revenues of the Commissioners ” includes all rates, rents, charges, contributions and revenues receivable by the Commissioners;
- “ the river ” means the river Dart;
- “ the river board ” means the Devon River Board;
- “ seaplane ” includes a flying boat, and any other aircraft designed to float on or manoeuvre on water but does not include a hover vehicle;
- “ the signed plan ” means the plan signed in quadruplicate by Sir Robert Villiers Grimston the chairman of the committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in each of the following offices:—
- (1) the Parliament Office of the House of Lords;
 - (2) the Private Bill Office of the House of Commons;
 - (3) the principal office of the Commissioners;
 - (4) the Ministry of Transport;
- “ statutory securities ” means any securities in which trustees are for the time being authorised by law to invest trust moneys;
- “ the Totnes Corporation ” means the mayor, aldermen and burgesses of the borough of Totnes;
- “ the Totnes Council ” means the council of the Totnes Corporation;
- “ the undertaking ” means the undertaking of the Commissioners as authorised from time to time;
- “ vessel ” includes any vessel, ship, lighter, keel, barge, boat, raft, pontoon and craft of any kind howsoever navigated, propelled or moved, any hover vehicle and (except for the purpose of levying rates) any seaplane on the surface of the water.

PART II

CONSTITUTION, APPOINTMENT AND ELECTION OF COMMISSIONERS

Present commissioners continued in office.

5.—(1) Notwithstanding any repeal effected by this Act each of the persons holding office as a commissioner of 1834 at the passing of this Act shall, unless he shall previously die or resign

or become disqualified to be a commissioner, hold office as a commissioner until the thirtieth day of June, nineteen hundred and sixty-three.

PART II
—cont.

(2) On the said thirtieth day of June, nineteen hundred and sixty-three all the persons then holding office as a commissioner shall go out of office, except sixteen of such persons, each of whom shall, unless he shall previously die or resign or become disqualified to be a commissioner, continue to hold that office as in this subsection provided, namely:—

- (a) as to twelve of such persons until and including the thirtieth day of June, nineteen hundred and sixty-four;
- (b) as to the four remaining such persons until and including the thirtieth day of June, nineteen hundred and sixty-five.

(3) The individuals to continue in office in accordance with the provisions of the last foregoing subsection shall in each instance be determined by ballot among the Commissioners, unless they shall otherwise agree.

6. The Commissioners shall be constituted of—

Constitution
of Commis-
sioners.

- five commissioners appointed by the Totnes Council;
- one commissioner appointed by the Dartmouth Council;
- four commissioners appointed by the district council;
- two commissioners appointed by the county council;
- one commissioner appointed by the Admiralty;
- one commissioner appointed by the Dartmouth Harbour Commissioners;
- one commissioner appointed by the Duchy of Cornwall;
- two commissioners appointed by the river board;
- one commissioner appointed by the chamber of shipping;
- one commissioner appointed by the Royal Yachting Association;
- three commissioners elected by the persons, partnerships or companies by this Act qualified to elect commercial members;
- three commissioners elected by the persons, partnerships or companies by this Act qualified to elect passenger members;
- two commissioners elected by the persons, partnerships or companies by this Act qualified to elect frontage members;
- two commissioners elected by the persons by this Act qualified to elect boating members.

PART II
—cont.Commis-
sioners
incorporated.

7. The several persons who from time to time are under this Act or any subsequent Act amending or extending this Act holding office as commissioners shall (subject to the provisions of any such subsequent Act) be incorporated by the name of "The River Dart Navigation Commissioners" and by that name be a body corporate with perpetual succession and a common seal and by that name may sue and be sued and have power to purchase, take on lease, hold and dispose of land and other property for the purposes of this Act and to put into execution the provisions of this Act so far as they are executed by the Commissioners.

Property to
continue
vested in
Commis-
sioners.

8. Notwithstanding any repeal effected by this Act, all the estate, right, title and interest of the commissioners of 1834 in and to all real and personal property which were immediately before the passing of this Act vested in the commissioners of 1834 shall be and are hereby transferred to and vested in the Commissioners but subject and without prejudice to any charges, incumbrances or claims which affect the commissioners of 1834 or their property.

Existing
deeds,
contracts, etc.,
to remain in
force.

9. Notwithstanding any repeal effected by this Act—

- (1) all deeds, conveyances, grants, assurances, assignments, leases, purchases, sales, mortgages, bonds, covenants, agreements, securities and contracts and all working arrangements entered into or made and subsisting at the passing of this Act and then in force including any agreement or contract modified or varied by any repealed enactment and then in force as so modified or varied and all liabilities and obligations incurred before the passing of this Act, and, except where otherwise expressly provided in this Act, all the provisions of any Act of Parliament (other than the repealed enactments) relating to the commissioners of 1834 or their undertaking and in force at the date of the passing of this Act shall be as binding and of as full force and effect in every respect against or in favour of the Commissioners as they would or might have been against or in favour of the commissioners of 1834 if this Act had not been passed;
- (2) any action, suit, prosecution or other proceeding commenced before the passing of this Act either by or against the commissioners of 1834 shall not abate or be discontinued or prejudicially affected by this Act but shall continue and take effect both in favour of and against the Commissioners in like manner to all intents as if this Act had not been passed;
- (3) every officer and servant of the commissioners of 1834 appointed or continued in his employment by virtue of or acting under any of the enactments repealed by this

Act shall hold and enjoy his office and employment with the salary and emoluments thereunto annexed and be deemed an officer or servant of the Commissioners, as the case may be, until he shall vacate or be removed from such office or employment and he shall have the same rights and privileges and be subject to the same conditions of service, powers of removal, rules, regulations, pains and penalties as he would have had or been subject to if this Act had not been passed, subject nevertheless and without prejudice to any powers, authorities, obligations, pains or penalties vested in him or to which he may be subject under any provisions of this Act;

- (4) the Commissioners shall for the purposes of this Act be and continue seised and possessed of and entitled to all things in action, claims and demands whatsoever of or to which the commissioners of 1834 were seised, possessed or entitled immediately before the passing of this Act;
- (5) all rates on vessels and goods, warehousing and other charges, tolls, fees, rents, fines, forfeitures, penalties, damages and other sums of money at the passing of this Act due or accruing due to the commissioners of 1834 may be collected and recovered by the Commissioners as if this Act had not been passed;
- (6) all books and documents which if this Act had not been passed would have been receivable in evidence shall be receivable in evidence as if this Act had not been passed;
- (7) all byelaws, rules, regulations and rates made or imposed by the commissioners of 1834 under any enactment so repealed and now enforceable by the Commissioners shall so far as they are not inconsistent with the provisions of this Act and until repealed, altered or superseded remain in force in like manner and to the like extent as if this Act had not been passed;
- (8) everything before the passing of this Act done, suffered and confirmed respectively shall be as valid as if this Act had not been passed.

10.—(1) (a) On or before the twentieth day of May in the Appointed year nineteen hundred and sixty-three and on or before the Commis- twentieth day of May in each succeeding third year the county sioners. council, the Admiralty, the Dartmouth Harbour Commissioners, the Duchy of Cornwall, the river board, the chamber of shipping and the Royal Yachting Association shall appoint the respective number of commissioners specified in section 6 (Constitution of

PART II
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Commissioners) of this Act to be appointed by the county council, the Admiralty, the said Commissioners, the said duchy, the river board, the chamber of shipping and the Royal Yachting Association and each such commissioner shall hold office from the thirtieth day of June following his appointment for the ensuing three years unless he shall previously die, resign, become disqualified or otherwise cease to be a commissioner.

(b) At the annual meetings of the Totnes Council the Dartmouth Council and the district council held in May in the year nineteen hundred and sixty-three and in May in each succeeding third year the said councils shall appoint the respective number of Commissioners specified in section 6 (Constitution of Commissioners) of this Act to be appointed by the said councils each of whom shall hold office from the thirtieth day of June, following his appointment for the ensuing three years unless he shall previously die, resign, become disqualified or otherwise cease to be a commissioner.

(2) (a) A person appointed a commissioner by a constituent body need not be a member or officer of the constituent body by whom he is appointed.

(b) In this subsection the expression “constituent body” means the Totnes Council, the Dartmouth Council, the district council, the river board or the chamber of shipping.

(3) If any vacancy shall arise in the office of an appointed commissioner, the authority, body or person in whom the appointment is vested shall with all convenient speed appoint another person to be a commissioner, and the person so appointed shall be entitled to hold office so long only as the commissioner in whose stead he is appointed would have been entitled to have continued in office.

(4) All appointments under this section shall be made in writing and may at any time be determined by the authority, body or person in whom the appointment is vested.

Election of
commercial,
passenger,
frontage and
boating
members.

11.—(1) The commercial members, the passenger members the frontage members and the boating members shall be elected in the manner provided by this Act in the month of April, nineteen hundred and sixty-four and in the month of April in every third year thereafter.

(2) Each person elected pursuant to the provisions of this Act shall hold office from the thirtieth day of June following his election for the ensuing three years unless he shall previously die, resign, become disqualified or otherwise cease to be a commissioner, and on the expiry of his term of office shall if qualified be eligible for re-election.

12.—(1) Subject to the provisions of section 13 (Disqualification of Commissioners) of this Act, each person fulfilling the following conditions shall be qualified to be a commercial member, namely:—

PART II
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Qualification
of commercial,
passenger,

frontage and
boating
members.

- (a) being a consignor or a consignee or being a partner in a firm or a director of a company which is a consignor or a consignee of goods on which dues to the value of ten pounds or upwards have been paid to the Commissioners during the twelve months ending on the thirty-first day of December immediately preceding the day of election; and
- (b) being a ratepayer or a partner in a firm or a director of a company which is a ratepayer in respect of premises situate within twenty miles from the banks of the navigation.

(2) Subject to the provisions of the said section 13, each person fulfilling the following conditions shall be qualified to be a passenger member, namely:—

being the owner or a partner in a firm or a director of a company which is the owner of a passenger boat and having by himself or by any person on his behalf paid to the Commissioners dues of three pounds or upwards during the twelve months ending on the thirty-first day of December immediately preceding the day of election.

(3) Subject to the provisions of the said section 13, each person shall be qualified to be a frontage member who is the owner or occupier or who is a partner in a firm or a director of a company which is the owner or occupier of property having a frontage to the navigation of a rateable value of not less than five pounds, or who is the owner of property having a frontage or frontages to the navigation of an aggregate length of not less than half of one mile.

(4) Subject to the provisions of the said section 13, each person fulfilling the following conditions shall be qualified to be a boating member, namely—

- (a) being a member of a local boating club; or
- (b) being the owner of a pleasure boat or yacht and having paid to the Commissioners a rate for the use of a mooring during the twelve months ending on the thirty-first day of December immediately preceding the day of election.

13.—(1) A person shall be disqualified from being or acting as a commissioner if—

Disqualifica-
tion of Com-
missioners.

- (i) he is an infant or alien; or
- (ii) he holds or accepts any office or place of profit under the Commissioners; or

PART II
—cont.

- (iii) he is adjudged bankrupt or makes a composition or arrangement with his creditors or becomes mentally disordered within the meaning of the Mental Health Act, 1959; or
- (iv) the company through or as representing which he derives his qualification is not registered in England or if an order has been made or a binding resolution passed for the winding up of such company; or
- (v) the partnership, association or body through or as representing which he derives his qualification is dissolved; or
- (vi) he is personally concerned or participates in any manner in any contract or in the profit thereof or in any work to be done under the authority of the Commissioners:

Provided that no person being a member of a company, association or body shall be disqualified from holding office as a commissioner by reason of any contract entered into between such company, association or body and the Commissioners but no such commissioner being a member of such company, association or body shall vote on any question relating to the execution of any such contract; or

- (vii) for six months after he comes into office he neglects to make and subscribe the declaration required by section 14 of the Commissioners Clauses Act, 1847; or
- (viii) for six months in succession he is absent from all meetings of the Commissioners.

(2) Notwithstanding anything in subsection (1) of this section if the Commissioners shall grant to any member of their body leave of absence from all meetings of the Commissioners for a period exceeding six months such commissioner shall not cease to be a commissioner by reason of his neglect to make and subscribe the declaration required by section 14 of the Commissioners Clauses Act, 1847, or of his absence from all meetings of the Commissioners during the period for which leave of absence is so granted.

Qualification
of electors of
commercial
members,
passenger
members,
frontage
members and
boating
members.

14. The qualification of electors of the commercial members the passenger members, the frontage members and the boating members shall, subject to the provisions of this Act, be regulated as follows, that is to say:—

- (1) every person being the consignor or consignee of goods who shall have paid to the Commissioners rates or dues under section 63 (Rates and rents on goods) of this Act of the sum of ten pounds or upwards during the twelve months ending the first day of December immediately

preceding the day of election shall be qualified to vote for each of the commercial members according to the following scale, that is to say:—

One vote for the first ten pounds so paid and an additional vote for each additional sum of one hundred pounds so paid above the first ten pounds;

- (2) every person being the owner of a passenger boat or boats registered with the Commissioners on which rates under section 64 (Navigation rates on vessels) of this Act to the amount of three pounds have been paid to the Commissioners during the twelve months ending the thirty-first day of December immediately preceding the day of election shall be qualified to vote for each of the passenger members according to the following scale, that is to say:—

One vote in respect of the first three pounds so paid and an additional vote for each additional one hundred pounds so paid above the first three pounds;

- (3) every person whose name is for the time being on the register of electors of frontage members as being the owner or occupier of property having a frontage to the navigation shall have one vote and an additional vote—

(a) for each additional fifty pounds paid by way of general rates to the rating authority or rating authorities in respect of such property above the first five pounds; and

(b) for each half mile of such frontage in excess of half of one mile;

- (4) every person being a member of a local boating club or being the owner of a pleasure boat or yacht who has paid to the Commissioners a rate for the use of a mooring during the twelve months ending on the thirty-first day of December immediately preceding the day of election shall be qualified to vote for each of the boating members and shall have one vote;
- (5) in the case of a partnership or body corporate or co-ownership the votes of such partnership or body or co-ownership shall be entered on the appropriate list to be made in accordance with section 17 (Lists of electors of commercial members, passenger members and frontage members to be made out) of this Act in the name of such partnership or body or co-ownership and shall be given as if they were the votes of one individual;
- (6) in the case of a person trading either in a partnership name or in any other name than his own the trade or

PART II
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partnership name of such person shall be inserted in the appropriate list and such person shall vote in the name so appearing;

- (7) no person shall be entitled under paragraph (1) or paragraph (2) of this section to more than six votes in all in respect of each vacancy to be filled or under paragraph (3) of this section to more than three votes in all in respect of each vacancy to be filled.

Registers.

15. The clerk shall subject to the provisions of this Act prepare and keep separate annual registers of the persons mentioned in paragraphs (1), (2) and (3) of section 14 (Qualification of electors of commercial members, passenger members, frontage members and boating members) of this Act and shall from time to time insert therein the names and addresses of all persons entitled to be included in such registers respectively together with particulars of the amounts from time to time paid to the Commissioners by each such person for rates and rents in respect of which they are entitled to vote respectively:

Provided that the clerk shall not be required to inquire as to the names and addresses of the persons entitled to be included in the register of electors of frontage members but any person so entitled who wishes to claim a vote shall send to the clerk particulars of his name and address and of the property in respect of which the claim is made not later than the thirtieth day of November preceding the day of the election and the name of such person when registered shall remain on the register until the clerk shall receive notice from or on behalf of any interested person that in consequence of a change of ownership the entry on the register requires to be amended.

Custody of
registers.

16. The registers shall be kept at the principal office and shall be in charge of the clerk and each register shall immediately before the preparation of the list of electors to be compiled therefrom be certified in writing by the clerk as containing to the best of his knowledge and belief correct particulars in accordance with the provisions of this Act.

Lists of
electors of
commercial
members,
passenger
members and
frontage
members
to be made
out.

17. On or before the thirty-first day of December, nineteen hundred and sixty-three and in every third year thereafter the clerk shall from the registers aforesaid make up three separate alphabetical lists of the persons entitled to vote as electors of commercial members, passenger members and frontage members respectively with the number of votes to which they are respectively entitled and on or before the same day shall cause each such list to be printed and to be posted on the outer door of the principal office for seven days thereafter and printed copies of each such list shall be kept at such office for public inspection and the Commissioners shall deliver a printed copy of each list to the Totnes

Council, the Dartmouth Council and the district council and on payment of such sum as the Commissioners think reasonable not exceeding three shillings for each copy to every person requiring it.

PART II
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18.—(1) On or before the first day of February, nineteen hundred and sixty-four and on or before the first day of February in each succeeding third year the Minister shall on the request of the Commissioners appoint a person to be reviser of the lists of electors of the commercial members, passenger members and frontage members made out as hereinbefore provided.

Revision of
lists of
electors of
commercial
members,
passenger
members and
frontage
members.

(2) The reviser shall within seven days next after the seventh day of February, nineteen hundred and sixty-four and within seven days next after the seventh day of February in each succeeding third year revise at the office of the Commissioners the lists of electors of the commercial members, passenger members and frontage members made out under this Act and notice of the time appointed for the commencement of such revision shall be posted on the outer wall of the principal office on every day for the five days before the day so appointed and shall be advertised at least once during such five days in one or more local newspapers published or circulating in Dartmouth and Totnes.

(3) On every such revision any person whose name is not inserted in the appropriate list may in person or by his agent claim to have his name inserted therein and any person whose name is or ought to be inserted in either of the lists may in person or by his agent claim to have the number of votes attributed or to be attributed to him corrected or correctly inserted therein and may object to the name of any person being retained or inserted in that list or to such person having the number of votes therein attributed to or claimed by him.

(4) Notice in writing of any such claim or objection shall be left with or sent by registered post or recorded delivery service by the person making the same to the clerk at the principal office and (in the case of an objection) to the person whose name or number of votes is challenged at his place of business or if none at his residence on or before the first day of February in which the revision is to take place as the case may require or in each case on or before such later date as the reviser may approve but the reviser shall not consider any such objection until he is satisfied that the person affected thereby has had a reasonable opportunity of being heard thereon.

(5) The reviser shall in pursuance of such applications and objections as aforesaid and after affording reasonable opportunity to the parties affected thereby to be heard as above provided correct the lists of electors of the commercial members, passenger members and frontage members by inserting in the appropriate

PART II
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list the name of any person which is not in that list and which it is shown to his satisfaction ought to be therein and by erasing therefrom the name of any person which is therein and which it is shown to his satisfaction ought not to be therein and by altering, correcting or erasing any entry which it is shown to his satisfaction is inaccurate and by inserting any entry which it is shown to his satisfaction ought to be therein. And the reviser shall also strike out the name of any person shown to his satisfaction to be dead and shall correct clerical and other errors (if any) in any list so as to bring the same into conformity with the facts.

(6) The decision of the reviser with respect to the lists shall be final and conclusive and the reviser shall forthwith after every revision sign his name at the foot of the lists revised and if the reviser neglects to complete the revision as provided by this Act he shall be liable to a fine not exceeding fifty pounds.

Commissioners to produce books, etc., to reviser.

19. For the purposes of the revision the Commissioners shall produce to the reviser such of their books, accounts and papers as the reviser may require and shall afford to the reviser all reasonable and proper facilities for revising the lists in pursuance of this Act.

Evidence of revised list.

20. Every list purporting to be a list revised according to this Act and signed by the reviser shall be prima facie evidence of the same being a list duly revised and signed according to this Act and of all the provisions of this Act relating to such list or to the revision thereof having been duly complied with.

Continuance of revised lists.

21. Subject to the provisions of section 15 (Registers) of this Act, every revised list shall be in force until the revision of the then next list and the persons whose names appear on the revised list from time to time in force shall be the persons entitled to vote at elections of the commercial members, passenger members and frontage members under this Act and shall at every such election be respectively entitled to such number of votes as appears by the revised list.

Revised lists to be conclusive evidence of right to vote.

22. The revised lists shall be conclusive evidence that the persons therein named and no others are entitled to vote at the election of the commercial members, passenger members and frontage members respectively to be held in that year and that the persons named in each such list are entitled to the number of votes stated therein.

Printing and sale of revised lists.

23. Every revised list of electors shall within seven days from the revision thereof be printed by the Commissioners and thenceforth until the day of election the Commissioners shall cause printed copies thereof to be sold at a reasonable price (not exceeding three shillings for each copy) to all persons desiring to buy the same.

24. With respect to the election of the commercial members, passenger members and frontage members the following provisions shall have effect:—

PART II
—cont.

Election of
commercial
members,
passenger
members,
and frontage
members.

- (1) The clerk shall be the returning officer whose decision in reference to any question arising shall be final:
- (2) Twenty-eight days at least prior to the day of election the returning officer shall give public notice requiring the names of candidates to be sent in to him. Such notice shall be printed and posted on a board to be affixed on the outer wall of the principal office and in addition thereto shall be inserted in a local newspaper published or circulating in Dartmouth and Totnes twice at least before the time for nomination of candidates shall expire:
- (3) Fourteen days at least prior to the day of election the name of each candidate shall be intimated to the returning officer in the form A, the form C, or the form E (as the case may require) set forth in the First Schedule to this Act or to the like effect and such form shall be signed by two electors of the commercial members, passenger members and frontage members (as the case may be) and by the candidate in approval of his nomination:
- (4) Any candidate may withdraw from his candidature by notice signed by him and delivered to the returning officer by four o'clock in the afternoon of the day immediately succeeding the last day for sending in nominations:
- (5) If at four o'clock in the afternoon of the day immediately succeeding the last day for sending in nominations the number of duly qualified candidates is not more than the number of vacancies to be filled there shall be no poll and the returning officer shall on the day of election declare the candidate or candidates, as the case may be, duly elected, but if the number of duly qualified candidates is more than the number of vacancies to be filled a poll shall be taken in the manner hereinafter provided:
- (6) Seven days at least prior to the day of election the returning officer shall in the event of a poll send by post to each elector at the address given in the respective lists of electors of the commercial members, passenger members and frontage members hereinbefore provided for a voting paper in the form B, the form D, or the form F (as the case may require) set forth in the First Schedule to this Act or to the like effect (with such variations as may be necessary in the case of a by-election) containing the names of the candidates and the votes of such electors shall be recorded in accordance with the directions in the said form:

PART II
—cont.

- (7) Every elector may vote for as many candidates of the class for whom he is entitled to vote as there are members of that class to be elected and the returning officer shall in summing up the votes allow to each of the candidates so voted for the number of votes to which the elector is entitled according to the list of electors:
- (8) The votes of a partnership or of a person trading in a partnership name or in any other name other than his own name shall be given in the partnership or trade name:
- (9) It shall not be competent to use any voting paper or to reckon the same for the purposes of any poll unless it has been delivered by post or otherwise to the returning officer in a sealed envelope addressed to him so that the same shall be received by him at the principal office not later than the day before the day of election:
- (10) On the day of election and not before the voting papers shall be opened and the votes shall be counted by the returning officer and the candidate or candidates who shall be found to have the greatest number of valid votes shall be declared by the returning officer the duly elected commercial members, passenger members and frontage members respectively:
- (11) Any candidate or an agent appointed by him in writing may be present at the opening of the voting papers and counting of the votes:
- (12) The returning officer shall make a return under his hand to the Commissioners of the persons elected and every person so returned shall be deemed duly elected and in case of an equality of votes the returning officer shall determine by lot between the candidates so equal:
- (13) In the event of the requisite number of commercial members, passenger members and frontage members not being elected at any election the Commissioners shall at the next convenient meeting thereafter elect a member to fill each vacancy.

Election of
boating
members.

25. With respect to the election of boating members the following provisions shall have effect:—

- (1) The provisions of paragraphs (1), (2), (4), (11), (12) and (13) of the last foregoing section of this Act shall, with any necessary modifications, apply to the election of boating members as they apply to the election of commercial members, passenger members and frontage members;

- (2) Fourteen days at least prior to the day of election the name of each candidate shall be intimated to the returning officer in the form G set forth in the First Schedule to this Act or to the like effect and such form shall be signed by two electors of the boating members and by the candidate in approval of his nomination:
- (3) Seven days at least prior to the day of election the returning officer shall in the event of a poll give public notice of the time and place of election and the names of the candidates. Such notice shall be inserted in a local newspaper published or circulating in Dartmouth and Totnes:
- (4) The election shall be held at the time and place stated in the notice and each elector attending shall if the number of duly qualified candidates is more than the number of vacancies, be entitled to call for a poll and to receive one voting paper in the form H set forth in the First Schedule to this Act or to the like effect (with such variations as may be necessary in the case of a by-election) containing the names of the candidates and the votes of such electors shall be recorded in accordance with the directions in the said form. If a poll is not called for then the election shall be by a show of hands:
- (5) Every elector may vote for as many candidates as there are vacancies:
- (6) The votes shall be counted by the returning officer and the candidate or candidates who shall be found to have the greatest number of valid votes shall be declared by the returning officer the duly elected boating members.

26.—(1) Subject as hereinafter mentioned if any commissioner elected as a commissioner pursuant to the provisions of this Act shall during his term of office as a commissioner die, resign, become disqualified or otherwise cease to be a commissioner the Commissioners shall convene a special meeting of the proper class of electors for the election of a commercial member, a passenger member, a frontage member or a boating member, as the case may be, to supply the vacancy and the proceedings at all such special meetings shall be conducted as nearly as may be in the same manner as the proceedings at triennial elections. Every person elected a commissioner under this section shall be entitled to hold office so long only as the commissioner in whose stead he is elected would have been entitled to continue in office but shall if qualified be eligible for re-election.

(2) If a vacancy occurs after the thirty-first day of January in the year in which the commercial members, passenger members,

PART II
—cont.

frontage members and boating members are to go out of office and before the triennial election in that year the vacancy shall not be filled until that triennial election.

Errors in
elections, etc.,
not to vitiate
acts of Com-
missioners.

27. Any act of the Commissioners or of any member thereof shall not be invalid or illegal by reason of any irregularity in the nomination or election of any member or by reason of the non-delivery of or the too late delivery of or any error in any list of electors or by reason of any irregularity in the making or publishing of any such list or any notice in respect thereof or by reason of any failure or omission on any occasion to elect any member or by reason of any other irregularity, error, failure or omission in or about any nomination or election or in or about any matter preliminary or incidental thereto.

Meetings of
Commis-
sioners.

28. Notwithstanding anything in sections 40 to 43 of the Commissioners Clauses Act, 1847, as incorporated with this Act, meetings of the Commissioners shall be held at the principal office or other place appointed by the Commissioners at least once in every three months on such days and at such times as the Commissioners shall from time to time appoint and the annual meeting shall be held in the month of June in each year on such day as the Commissioners shall from time to time appoint.

Expenses of
revision of
lists and
elections.

29. The expenses incurred by the Commissioners in the making, preparing, printing and revising of the lists of electors and in any way incidental thereto, including a fee not exceeding five pounds to the reviser and the costs and expenses of the Minister in connection with the appointment of the reviser, and the expenses incurred by the Commissioners in printing and sending voting papers or otherwise in relation to elections under this Act, shall be defrayed by the Commissioners as part of their ordinary expenses.

Special
meetings of
Commis-
sioners.

30. The Commissioners may hold special meetings and the chairman of the Commissioners for the time being or any three or more commissioners may at any time by writing delivered to the clerk require a special meeting to be convened and the clerk shall convene a meeting accordingly and shall give at least seven clear days' notice thereof to each commissioner.

Where day
for any
proceeding
falls on
Sunday, etc.,
proceeding to
be taken on
next day.

31. Where by this Act any proceeding or act is directed or allowed to be taken or done on a certain day then, if that day happens to be a Sunday, Christmas Day, Good Friday, any bank holiday under the Bank Holidays Act, 1871, or any day appointed for public thanksgiving or mourning, the proceeding or act shall be considered as taken or done in due time if it is taken or done on the next day afterwards not being one of the days hereinbefore specified.

PART III

LIMITS OF NAVIGATION AND POWERS OF COMMISSIONERS

32.—(1) The limits within which the Commissioners shall have authority shall extend from the weir at Totnes in the county of Devon southward to the northern limit of Dartmouth Harbour at Dittisham in the county of Devon as defined in the Dartmouth Harbour Act, 1951, and are shown coloured blue on the signed plan. Limits of navigation.

(2) In case of any discrepancy between the limits delineated on the signed plan and the limits described in subsection (1) of this section the signed plan shall be deemed to be correct and shall prevail.

33. Subject to the provisions of this Act the Commissioners may from time to time construct, erect and maintain and may alter and improve all necessary and convenient jetties, walls, landing places, approaches, steps, warehouses, offices, sheds and other buildings, cranes, weighing machines, machinery and other works, apparatus and conveniences: Maintenance and improvement of navigation.

Provided that—

- (i) the Commissioners shall not exercise the powers of this section on any land not for the time being belonging to them except with the licence or consent of the owner and occupier of the land;
- (ii) any electric wires, mains, cables, works or apparatus constructed, erected and maintained under the provisions of this section shall be so constructed, erected, used and maintained as to prevent any interference with any telegraphic line (as defined by the Telegraph Act, 1878) belonging to or used by the Postmaster General or with telegraphic communication by means of any such line;
- (iii) nothing in this section shall exempt the Commissioners from any indictment, action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

34. The Commissioners may provide, purchase, take on lease, hire and use such steam or other tugs, dredgers, eroders, engines, lighters or other vessels, machinery and apparatus as they may think necessary for effecting the purposes of this Act and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell or dispose of the same. All sums received in respect of any such letting on hire shall be deemed to form part of the revenue of the Commissioners and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of this Act to which capital is properly applicable. Power to purchase dredgers, etc.

PART III

—cont.

Power to
dredge, etc.

35.—(1) The Commissioners may deepen, widen, dredge, scour and excavate any portion of the bed and channel of the navigation to the extent necessary to secure sufficient waterway and approach to any part of the navigation for vessels using the same.

(2) The Commissioners may lay, place or deposit or cause to be laid, placed or deposited upon the banks, shoals, sands or sides of the navigation any mud, sand, soil, rubbish, gravel or rock removed or taken up in the exercise of the powers of subsection (1) of this section in such places and in such manner as the Commissioners shall consider necessary for raising and supporting the banks or sides of the navigation:

Provided that no such mud, sand, soil, rubbish, gravel or rock as aforesaid shall be laid, placed or deposited at a greater distance than twenty feet from the banks or sides of the navigation except with the licence or consent of the owner and occupier of the land upon which it is laid, placed or deposited.

(3) The Commissioners may execute and do all such works and things as they may deem necessary for the maintenance, cleansing, widening and improvement of the navigation and for the preservation of the natural beauty of the navigation.

(4) All sand, mud, stone and other materials dredged up or removed shall be the property of the Commissioners and they may sell or otherwise dispose of or remove or deposit the same as they think fit.

(5) All money arising from any sale or other disposition of sand, mud, stone or other materials under this section after paying the expenses connected therewith shall be applied in the same manner as revenue is to be applied.

(6) The powers of the Commissioners under subsections (1) and (4) of this section shall be exercisable subject to the provisions of section 88 (Saving the rights of the Duchy of Cornwall) of this Act and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Duchy of Cornwall on behalf of Her Majesty or the Duke of Cornwall for the time being may be given subject to such restrictions and conditions including the payment by the Commissioners to the Duchy of Cornwall of royalties, rents or sums of money in respect of materials raised from any place in the river and sold by the Commissioners under this section or in respect of any place in the river upon which materials may be deposited as may be fixed by the Duchy of Cornwall.

(7) (a) In the exercise of the powers conferred by this section the Commissioners shall not interfere with, damage or injuriously affect any submarine cable placed and maintained by the Postmaster General in or across the navigation.

(b) Before exercising the said powers within a distance of fifty yards of any submarine cable placed and maintained by

the Postmaster General in or across the navigation the Commissioners shall give in writing to the Postmaster General as long notice as possible and in any case not less than twenty-eight days' notice in respect of their intention to exercise such powers.

(c) Any mud, sand, soil, rubbish, gravel, rock or other materials dredged up and removed shall not be laid down or deposited in such a place or manner as to cover any such submarine cable or impede any work of or connected with the inspection or repair of such cable.

(8) The provisions of subsection (7) of this section shall extend and apply for the protection of the South Western Electricity Board as if for the references therein to the Postmaster General and to any submarine cable placed and maintained by the Postmaster General in or across the navigation there were substituted reference to the South Western Electricity Board and to the cable at the passing of this Act maintained by that board in the navigation between Blackness Point and Sandridge Point which was placed in such position under a consent from the Duchy of Cornwall dated the thirtieth day of March, nineteen hundred and fifty-one:

Provided that such provisions shall not extend or apply to any cable laid in renewal or replacement of the cable maintained as aforesaid, unless such renewal or replacement is rendered necessary by reason of the exercise by the Commissioners of the powers conferred by this section, but in that event the said provisions shall not extend or apply for the protection of the said board for any period exceeding the period during which the original cable would reasonably have been expected to continue in use if the Commissioners had not exercised the said powers.

(9) No materials raised under the provisions of this section shall be deposited in any place below the level of mean high-water springs otherwise than in such a position and under such restrictions and regulations as may be fixed by the Minister.

36.—(1) The Commissioners may from time to time make such Byelaws. byelaws as to them seem meet for all or any of the following purposes, namely:—

- (a) for regulating or prohibiting the mooring or anchoring of vessels in the navigation;
- (b) for regulating the placing, laying down, maintaining, using and having existing and future moorings in the navigation and for prescribing the patterns of moorings in the navigation;
- (c) for securing the good and orderly conduct of persons in charge of or using vessels in the navigation;
- (d) for the regulation or prevention of the use of firearms in the navigation;

PART III
—cont.

- (e) for the prevention of nuisances and offences against decency in the navigation;
- (f) for regulating and controlling in the navigation the navigation and speed of vessels mechanically propelled and preventing obstruction to vessels using the navigation;
- (g) for securing the safety of persons using the navigation;
- (h) for regulating the removal and disposal within the navigation of all rubbish;
- (i) for preventing the taking of vessels by unauthorised persons;
- (j) for preventing the discharge or deposit of noxious things or substances within the navigation.

(2) Before making any byelaws under subsection (1) of this section the Commissioners shall consult with the river board, the county council, the Totnes Council and the district council.

(3) The byelaws which may from time to time be made by the Commissioners in exercise of the powers in that behalf conferred on them by section 83 of the Harbours Clauses Act, 1847, and by subsection (1) of this section may provide for imposing a penalty not exceeding twenty pounds for the breach or non-observance of any of the byelaws.

(4) No byelaw made by the Commissioners after the coming into operation of this Act shall have effect unless and until it is confirmed by the Minister and the provisions of subsections (3) to (6) of section 250 and section 252 of the Local Government Act, 1933, shall apply to all byelaws so made as if the Commissioners were a local authority and in the application of such last-mentioned provisions the Minister shall be the confirming authority.

(5) The discharge of trade or sewage effluent into the navigation in accordance with consent granted under the Rivers (Prevention of Pollution) Act, 1961, or section 7 of the Rivers (Prevention of Pollution) Act, 1951, shall not constitute an offence under, or a contravention of, any byelaw under paragraph (j) of subsection (1) of this section.

Powers as to
moorings.

37.—(1) The Commissioners may place, lay down, maintain, use and have moorings in the navigation.

(2) (a) The Commissioners may from time to time on such terms and conditions as they shall think fit grant licences to any person to place, lay down, maintain, use and have existing and future moorings in the navigation and may contribute to the cost of the same and the Commissioners may also grant licences to any person to exercise the privilege of preferential right of user of moorings laid down by the Commissioners in consideration of a contribution or periodical payment by such person to the Commissioners.

(b) Any licence granted under paragraph (a) of this subsection shall be valid only for a period of twelve months commencing with its date.

(3) Nothing in this section shall be deemed to confer on the Commissioners any right, title or interest in or to any land (not for the time being belonging to the Commissioners) forming part of the bed or foreshore of the navigation.

38.—(1) In this section “houseboat” means any boat or barge or any vessel or structure or any part, remains or wreckage thereof whether or not the same shall be floating at any stage of the tide and whether or not the same shall be used or intended to be used for human habitation but does not include any ship registered under the Merchant Shipping Act, 1894, or any boat or vessel bona fide used for navigation. As to houseboats.

(2) It shall not be lawful without the written consent of the Commissioners to moor, place, keep or maintain in the navigation any houseboat whether or not the same shall have been so moored or placed before the passing of this Act:

Provided that—

- (i) such consent shall not be withheld unless the Commissioners are satisfied that the mooring, placing, keeping or maintaining of the houseboat would be injurious to the amenities of the navigation or public health or would constitute a danger to or interference with the navigation of vessels in the navigation and the Commissioners shall on the refusal of any consent under this subsection specify in writing the ground or grounds of such refusal;
- (ii) nothing in this subsection shall prejudice or affect any obligation existing under any Act other than this Act to obtain the consent of any local authority within whose area the houseboat is or is proposed to be moored, placed, kept or maintained to such mooring, placing, keeping or maintaining.

(3) (a) If any houseboat shall be moored, placed, kept or maintained contrary to the provisions of subsection (2) of this section the Commissioners may by notice in writing to be given in the manner hereinafter provided require the person having the control of the houseboat to remove or demolish it.

(b) Any such notice shall be given by leaving it or sending it in a prepaid letter addressed to the person having the control of such houseboat at his usual or last known residence or (if it is not practicable after reasonable inquiry to ascertain the name and address of such person) by posting the same in a conspicuous position on such houseboat or on the land or foreshore near to such houseboat and shall specify the period within which such removal or demolition shall be completed.

PART III
—cont.

(4) *a*) If any person fails without reasonable cause to comply with any notice given by the Commissioners under the provisions of subsection (3) of this section he shall be liable to a fine not exceeding ten pounds and the Commissioners may at any time after the expiration of the period specified in such notice remove or demolish the houseboat referred to in the notice.

b) Subject as is provided in subsection (6) of this section the costs and expenses reasonably incurred by the Commissioners in or in connection with any such removal or demolition may be recovered by the Commissioners as a simple contract debt in any court of competent jurisdiction from the person having the control of such houseboat unless a fine shall have been recovered from that person under paragraph *a*) of this subsection.

(5) For the purposes of subsections (3) and (4) of this section the owner of any houseboat shall until the contrary be proved be deemed to be the person having the control thereof.

(6) *a*) Where any houseboat shall have been removed or demolished by the Commissioners as aforesaid the Commissioners may retain the same or the materials thereof and may and shall if so required by the owner sell or dispose of the same or of such materials and subject as hereinafter provided retain the proceeds of such sale or disposal.

b) For the purpose of ascertaining the amount recoverable by the Commissioners under paragraph *b*) of subsection (4) of this section in respect of the costs and expenses incurred by them in or in connection with the removal or demolition of any such houseboat credit shall be given for the net amount (if any) received by the Commissioners of the proceeds of the sale or disposal (after deduction of any costs and expenses incurred by the Commissioners in effecting the same) of such houseboat or the materials thereof. If such net amount shall exceed the amount of the costs and expenses incurred by the Commissioners in or in connection with such removal or demolition as aforesaid they shall pay the amount of such excess to the owner of such houseboat which shall have been removed or demolished.

(7) Nothing in this section shall be deemed to confer on the Commissioners any right, title or interest in or to any land (not for the time being belonging to the Commissioners) forming part of the bed or foreshore of the navigation.

(8) This section shall not be taken to dispense with any permission, consent or approval which may be required under the Town and Country Planning Act, 1947, or any Act amending or extending the same.

Appeals
under last
preceding
section.

39.—(1) Any person aggrieved by any refusal of consent or any requirement of the Commissioners under section 38 (As to houseboats) of this Act may appeal to the Exeter County Court.

(2) Any appeal to the Exeter County Court under this section shall be determined by the judge of that court.

(3) The time within which any such appeal may be brought shall be twenty-one days from the date on which notice of the terms, conditions, refusal or requirement was given to the person desiring to appeal.

(4) (a) On the hearing of such appeal the judge may dismiss or allow the appeal or may vary the terms, conditions or requirement appealed against by substituting therefor any terms, conditions or requirement which the Commissioners could have prescribed or made under the said section 38.

(b) The judge may upon the hearing of the appeal make any order for costs where in his discretion he shall think fit.

(c) So far as not inconsistent with this Act county court rules shall apply to the proceedings on the appeal and to the enforcement of any order made thereon.

(5) In any case in which such an appeal lies the document notifying the terms, conditions, refusal or requirement in the matter shall state the right of appeal to the county court and the time within which such an appeal may be brought.

(6) Where any refusal or requirement against which a right of appeal is conferred by this section involves the execution of any work or the taking of any action or makes it unlawful for any person to use any premises for any purpose for which they were lawfully used up to the time of such refusal or requirement—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Commissioners shall not execute any such work or take such action; and

(c) any person may use such premises for such purpose; until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this section the court varies or reverses any refusal or requirement of the Commissioners, effect shall be given to the order of the court and in particular any necessary licence or consent shall be granted.

40.—(1) (a) Section 38 (As to houseboats) of this Act shall Commence-
come into operation on, but not until, such date as may be fixed ment of
by a resolution of the Commissioners of which date public notice section 38
shall be given by the Commissioners by advertisement in one of this Act.
or more local newspapers published or circulating in Dartmouth
and Totnes.

(b) Every such advertisement shall also state the effect of the said section 38 and the date specified therein as the date on which that section shall come into operation shall not be less than one month after the date of the publication of the advertisement:

PART III
—cont.

Provided that an application for the consent of the Commissioners to moor, place, keep or maintain a houseboat in the navigation may be made and determined before the said section comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

Compensation
for loss under
section 38
of Act.

41.—(1) (a) Any person being entitled to any interest in any lands having a frontage to the navigation shall upon proof of title and of the obtaining of all necessary consents under the Town and Country Planning Act, 1947, or any amendment or re-enactment thereof for the time being in force and subject as hereinafter provided be entitled to receive and shall be paid by the Commissioners compensation for such loss, if any, as may have been or may be sustained by him by the extinguishment or restriction under section 38 (As to houseboats) of this Act, of any rights with reference to such lands which he might have lawfully exercised if this Act had not been passed, provided that within twelve months after the date of the passing of this Act, or such longer period as the Commissioners may in any case allow, he delivers to the Commissioners notice in writing of his claim for compensation containing—

- (i) such particulars as are required by subsection (2) of section 4 of the Land Compensation Act, 1961, to be given in such notices of claim as are referred to in that section; and
- (ii) a description of the lands in which he claims to be entitled to an interest.

(b) Within two months after the passing of this Act the Commissioners shall publish a notice in a local newspaper circulating in Dartmouth and Totnes stating the effect of this subsection.

(c) A copy of a newspaper containing such notice shall be sufficient evidence of the publication of the notice.

(2) Any compensation payable under the provisions of subsection (1) of this section shall be of such amount as may be agreed between the Commissioners and the person claiming the same or as (failing such agreement) shall be determined by the Lands Tribunal.

(3) Any compensation payable under the provisions of subsection (1) of this section shall be paid to the person entitled thereto as soon as practicable after the amount thereof has been agreed or determined as aforesaid.

Power to
provide
dwellings for
officers, etc.

42. The Commissioners may from time to time provide on any lands belonging to them or may take on lease or hire elsewhere such dwelling-houses and offices for any of their officers, servants or workmen as they think fit and may permit the same to be

occupied accordingly with or without the payment of any rent for the same and on such terms and conditions as the Commissioners think fit.

PART III
—cont.

43.—(1) The Commissioners may with the previous consent in writing of and upon such terms, conditions and restrictions and for such period as may be approved by the Minister lease to any person—

Power to
lease under-
taking or
rates.

(a) the undertaking; or

(b) the right to take and retain the rates, dues, tolls and charges authorised by this Act.

(2) As from the commencement of any lease made under the preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred on the Commissioners by this Act and shall be subject to all the liabilities and obligations to which the Commissioners are subject and shall perform all the duties of the Commissioners under this Act.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Minister and the provisions of this Act with respect to such lease or to the lessee shall apply to any such assignment or to the assignee respectively.

(4) The Commissioners shall within one month after the date of any lease made under this section deposit a certified copy thereof at the Ministry of Transport and shall upon failure to do so be liable to a fine not exceeding twenty pounds.

(5) Nothing in this section shall exempt the Commissioners from their obligation to keep and render accounts and as from the date of any lease made under this section the provisions of this Act and the Acts incorporated therewith as to the keeping, delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Commissioners and all moneys received by the Commissioners under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Act.

(6) Notwithstanding that the power to take and retain rates in respect of the user of any part of the undertaking is transferred by the Commissioners to some other person under this section the rates in respect of which the power to take and retain is so transferred shall for the purposes of section 6 of the Transport Charges &c. (Miscellaneous Provisions) Act, 1954, be deemed to be charges (within the meaning of the said Act of 1954) which the Commissioners are for the time being authorised to demand and take in pursuance of a statutory provision and in connection

PART III
---cont.

with any application for the revision of such rates the provisions of the said section 6 shall apply as if the power to take and retain had not been transferred.

(7) In this section " rates " includes rents, charges and sums of money.

PART IV
FINANCIALSecurity for
existing
liabilities

44. Notwithstanding any repeals effected by this Act any bond or mortgage which at the date of the passing of this Act is secured on any of the revenues of the Commissioners or of the interest thereon shall continue to be so secured and any holder of a bond or mortgagee or other person secured shall continue to have the same rights and remedies against the Commissioners and against any specific property charged in the same manner and to the same extent in all respects as he would have had if this Act had not been passed.

Power to
borrow.

45.—(1) The Commissioners may from time to time borrow at interest on the security of the revenues of the Commissioners a sum or sums not exceeding in the aggregate one hundred thousand pounds.

(2) All moneys borrowed under this section shall be applied in the manner and order following and not otherwise, that is to say:—

(i) in payment of the costs, charges and expenses of and incident to the applying for, obtaining and passing of this Act;

(ii) in carrying on the general purposes of the undertaking to which capital is properly applicable.

(3) Any money borrowed under this Act shall be repaid within such period not exceeding sixty years from the date of the borrowing as the Commissioners with the consent of the Minister may, having regard to the circumstances of each case, determine, which periods shall be the prescribed periods for the purposes of this Act.

Reborrowing.

46. Any money borrowed under this Act and discharged otherwise than by means of a sinking fund or by instalments may be reborrowed if required for the purposes of the undertaking and so from time to time.

Mode of
payment off
of money
borrowed.

47. The Commissioners shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund

shall be made within twelve months, or when the money is repayable by half-yearly instalments, within six months, from the date of borrowing.

PART IV
—cont.

48. A person lending money to the Commissioners under the Protection borrowing powers contained in this Act shall not be bound to inquire as to the observance by the Commissioners of any provisions of this Act, or of any Act incorporated therewith, or be bound to see to the application, or be answerable for any loss, misapplication or non-application, of the money lent or of any part thereof. of lender from inquiry.

49. It shall not be lawful to exercise the powers of borrowing conferred upon the Commissioners by this Act (other than the power of borrowing to pay the costs, charges and expenses referred to in section 95 (Costs of Act) of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act, 1946. Saving for powers of Treasury.

50.—(1) The holders of any security given in respect of money borrowed by the Commissioners may enforce payment of arrears of interest or principal or principal and interest due to them by the appointment of a receiver. Appointment of a receiver.

(2) In order to authorise the appointment of a receiver in respect of arrears of interest or principal or principal and interest the amount owing to the holders of any security by whom the application for a receiver is made shall be not less than one thousand pounds.

(3) In sections 86 and 87 of the Commissioners Clauses Act, 1847, as incorporated with this Act the expressions “mortgage” and “mortgagee” shall respectively include any security for money borrowed under this Act and the holder of any such security.

51. All moneys received by the Commissioners under the authority of the enactments repealed by this Act and of this Act and being in the nature of revenue shall be applied by them to the purposes and in the order following:— Application of revenue.

- (1) in payment of the working and establishment expenses and the cost of the maintenance, renewal and repair of the undertaking;
- (2) in payment year by year of the interest accruing on money borrowed by the Commissioners;
- (3) in providing the requisite instalments, appropriations or sinking fund payments in respect of moneys borrowed by the Commissioners;
- (4) in defraying all the costs, charges and expenses which the Commissioners may incur in the execution of this Act and in making, completing, doing and maintaining

PART IV
—cont.

all such works, matters and things as they may be authorised to make, complete, do and maintain so far as the same shall not be payable and paid out of capital;
(5) in providing any reserve fund.

Reserve fund.

52.—(1) The Commissioners may if they think fit provide a reserve fund by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities until the fund so formed amounts to the sum of ten thousand pounds.

(2) The reserve fund provided under this section may be applied—

- (a) to answer any deficiency at any time happening in the income of the Commissioners; or
- (b) to meet any extraordinary claim or demand at any time arising against the Commissioners; or
- (c) in payment of the cost of renewing, improving or extending any works;

and so that if the fund be at any time reduced it may thereafter be again restored to the said sum and so from time to time as often as such reduction happens:

Provided that resort may be had to the reserve fund though the fund may not at the time have reached or may have been reduced below the sum of ten thousand pounds.

Sinking fund.

53.—(1) If the Commissioners determine to repay by means of a sinking fund any moneys borrowed under this Act the sinking fund shall be formed and maintained either—

- (a) by payment to the fund throughout the prescribed period of such equal annual sums as will be sufficient to pay off within that period the moneys for the repayment of which the sinking fund is formed (a sinking fund so formed being hereinafter called “a non-accumulating sinking fund”); or
- (b) by payment to the fund throughout the prescribed period of such equal annual sums as, with accumulations at a rate not exceeding such rate as the Minister may approve, will be sufficient to pay off within that period the moneys for the repayment of which the sinking fund is formed (a sinking fund so formed being hereinafter called an “accumulating sinking fund”).

(2) Every sum paid to a sinking fund, and in the case of an accumulating sinking fund the interest on the investments of the sinking fund, shall unless applied in repayment of the moneys for the repayment of which the sinking fund is formed be immediately invested in statutory securities, but the Commissioners may from time to time vary and transpose the investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Commissioners towards the equal annual payments to the fund.

(4) The Commissioners may at any time apply the whole or any part of a sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund was formed:

Provided that in the case of an accumulating sinking fund the Commissioners shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) If at any time the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based, any deficiency shall be made good by the Commissioners.

(6) If at any time the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based, any such excess may be applied towards such annual payments.

(7) Any surplus of a sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed, shall be applied to such capital purposes as the Commissioners with the consent of the Minister may determine.

(8) Any expenses connected with the formation, maintenance, investment, application or management of or otherwise in relation to any sinking fund under this Act shall be paid by the Commissioners in addition to the payments provided for by this Act.

54.—(1) If at any time it appears to the Commissioners that the amount in a sinking fund together with the sums which will be payable thereto in accordance with the provisions of this Act and in the case of an accumulating sinking fund with the accumulations thereon will not be sufficient to repay within the fixed period the moneys for the repayment of which the sinking fund is formed the Commissioners shall either temporarily or permanently make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Commissioners shall increase the payments to such extent as the Minister may direct.

Adjustments
to sinking
fund.

PART IV
—cont.

(2) If the Commissioners desire to accelerate the repayment of any moneys borrowed they may with the approval of the Minister increase the amounts payable to the sinking fund.

(3) If the amount in a sinking fund together with the sums which will be payable thereto in accordance with the provisions of this Act and also in the case of an accumulating sinking fund together with the accumulations thereon will in the opinion of the Minister be more than sufficient to repay within the fixed period the moneys for the repayment of which the sinking fund is formed the Commissioners may reduce the payment to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the fixed period the moneys for the repayment of which the sinking fund is formed.

(4) If at any time the amount in a sinking fund together with the accumulations thereon in the case of an accumulating sinking fund will in the opinion of the Minister be sufficient to repay the moneys for the repayment of which the sinking fund is formed within the fixed period the Minister may authorise the Commissioners to suspend the annual payments to the sinking fund until the Minister otherwise directs.

Return to
Minister.

55.—(1) The clerk to the Commissioners shall if and when he is requested by the Minister so to do send to the Minister a return showing the provision made by the Commissioners for the repayment of moneys borrowed by them under the authority of this Act.

(2) The return shall—

- (a) show such particulars, be made up to such date and be in such form as the Minister may require;
- (b) be certified by the treasurer or other person whose duty it is to keep the accounts of the Commissioners and if so required by the Minister be verified by statutory declaration made by that person;
- (c) be sent within one month after the making of the request therefor.

(3) If it appears to the Minister from any return made under this section or otherwise that the Commissioners—

- (a) have failed to pay any instalment or annual payment required to be paid; or
- (b) have failed to appropriate to the discharge of any loan any sum required to be so appropriated; or
- (c) have failed to set apart any sum required for a sinking fund; or
- (d) have applied any portion of a sinking fund to a purpose other than those authorised;

the Minister may by order direct that such sum as is specified in the order not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date set out in the order and the Commissioners shall notify the Minister as soon as the order has been complied with.

(4) An order made under the last preceding subsection may be enforced at the instance of the Minister by mandamus.

(5) If a return required to be made under this section is not made within the time specified in subsection (2) of this section the person in default shall be liable to a penalty not exceeding twenty pounds and notwithstanding the recovery of any such penalty the making of the return may be enforced at the instance of the Minister by mandamus.

56.—(1) The local authorities may from time to time—

Power to local
authorities
to give
financial
assistance to
Commis-
sioners.

- (a) contribute such sums as they think fit to the revenues of the Commissioners;
- (b) lend to the Commissioners any moneys which the Commissioners are empowered by this Act to borrow on such terms and conditions and in such form as may be agreed between the Commissioners and the local authorities and any money so lent shall be repaid to the local authorities by the Commissioners within the prescribed periods;
- (c) guarantee either the principal of or the interest on any moneys borrowed by the Commissioners under this Act, or both such principal and interest.

(2) The powers conferred on the local authorities by the foregoing subsection may be exercised by any one or more of those authorities and, if exercised by more than one authority, any contribution given, money lent or guarantee entered into by the authorities shall be in such proportions as may be agreed between the authorities.

(3) Any sum paid by the Totnes Corporation or the district council under paragraph (a) of subsection (1) of this section or to meet a guarantee entered into under paragraph (c) of that subsection of the interest on any money borrowed by the Commissioners shall be paid out of the general rate fund of the borough and the general rate fund of the district respectively.

(4) (a) The local authorities shall have power from time to time to borrow without the consent of any sanctioning authority such sums as may be requisite for the purpose of providing any sum or sums which they may lend to the Commissioners under the provisions of paragraph (b) of subsection (1) of this section or to meet any guarantee of the principal of any moneys borrowed by the Commissioners which may have been entered into under

PART IV
—cont.

paragraph (c) of the said subsection, and any sum borrowed by the local authorities under this subsection shall be repaid within a period to expire not more than one year after that for which it was lent by them to the Commissioners or that for which it was borrowed by the Commissioners (as the case may be).

(b) The provisions of Part IX of the Local Government Act, 1933, so far as they are not inconsistent with this section shall extend and apply to money borrowed by the local authorities under this subsection as if it were borrowed under Part IX of the said Act of 1933.

(c) It shall not be lawful to exercise the powers of borrowing conferred by this subsection except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

(5) In this section “the local authorities” means the county council, the Totnes Corporation and the district council, or any of them.

Annual
statement to
be printed.

57. It shall be obligatory on the Commissioners to cause an annual statement of accounts to be printed and copies to be made available to the public at a price not exceeding one shilling for each copy and notwithstanding anything in the Commissioners Clauses Act, 1847, the same person may be both the clerk and treasurer to the Commissioners.

Annual
account to
be sent to
Minister.

58. The Commissioners shall in the month of June in every year furnish to the Minister a statement showing the income, expenditure, assets and liabilities of the Commissioners in and for the year ending on the preceding thirty-first day of March.

Auditor.

59.—(1) The Commissioners shall from time to time appoint a person to be auditor to examine and audit the accounts of the Commissioners and may fix the payments to be made to him for fees and for expenses (if any) and the amount of the fees and expenses (if any) shall be paid by the Commissioners out of the revenues of the Commissioners.

(2) No person shall be qualified for appointment as auditor of the accounts of the Commissioners unless he is a member of one or more of the following bodies:—

the Institute of Chartered Accountants in England and Wales;

the Institute of Chartered Accountants in Scotland;

the Association of Certified and Corporate Accountants;

the Institute of Chartered Accountants in Ireland;

any other body of accountants established in the United Kingdom and for the time being recognised by the

Board of Trade for the purpose of the provisions of section 161 of the Companies Act, 1948, relating to the qualifications for appointment as auditor of a company other than an exempt private company.

PART IV
—cont.

(3) The Commissioners shall on demand by the auditor produce to him all books, accounts, deeds, papers, writings and other documents and furnish him with all information in their possession or power and afford him all reasonable facilities for conducting the examination and audit.

(4) If the Commissioners refuse or neglect to comply with any of the provisions of this section they shall be liable to a fine not exceeding twenty pounds for every month during which they neglect or refuse so to comply.

60. Capital money received by the Commissioners in respect of a transaction under section 73 (Power to dispose of lands) of this Act shall be applied in such manner as the Minister may approve towards the discharge of any debt incurred under this Act or otherwise for any purpose for which capital money may properly be applied.

Proceeds of
sale of lands
to be treated
as capital.

61. The Commissioners may—

- (i) subscribe or make reasonable donations to the funds of any association of harbour, dock or port authorities or the Sand and Gravel Association of Great Britain or any other association or of their officers and formed for the purpose of consultation as to their common interests and the discussion of matters relating to the administration of harbours, docks, ports or rivers; and
- (ii) pay any reasonable expenses of the attendance of any members or officers of the Commissioners at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributions towards the proceedings of any such conferences or meetings.

Subscriptions
to associations
and other
expenses.

62.—(1) The Commissioners may grant such pensions, gratuities or allowances or make such other payments as they may think fit to any person who is for the time being or has been an employee of the Commissioners or, where in their opinion adequate provision is not otherwise made, to the widow, children or dependants of any such person.

Power to make
super-
annuation
and other
allowances.

(2) The Commissioners may enter into and carry into effect agreements with any insurance company or other association or company for securing to all or any such persons or the widow, children or dependants of any such persons such pensions, gratuities, allowances or payments as are by this section authorised to be granted or made.

PART V

RATES AND CHARGES

Rates and
rents on
goods

63.—(1) The Commissioners may demand and take in respect of all goods shipped, unshipped or transhipped within the navigation rates not exceeding those specified in Part I of the Second Schedule to this Act, subject to the conditions specified in that part of the schedule.

(2) If any goods remain on or in any quay, shed or other work of the Commissioners for more than seventy-two consecutive hours after the time when the goods are placed thereon or therein the Commissioners may demand and take in respect of such goods, quay or shed rent not exceeding the amount appointed under Part II of the Second Schedule to this Act.

Navigation
rates on
vessels

64. The Commissioners may demand and take in respect of every vessel other than a seaplane entering, using or leaving the navigation rates not exceeding those specified in Parts III and IV of the Second Schedule to this Act.

Quay rates on
vessels.

65.—(1) The Commissioners may demand and take in respect of every vessel exceeding twenty gross tons other than a seaplane lying alongside any quay rates not exceeding those specified in Part V of the Second Schedule to this Act, subject to the condition specified in that part of the schedule.

(2) In this section and Part V of the Second Schedule the expression “quay” shall mean any quay, pier, jetty or pontoon belonging to or occupied by the Commissioners.

Mooring
rates.

66.—(1) The Commissioners may demand and take for the use by vessels other than seaplanes of any buoy, pillar, post or mooring within the navigation rates not exceeding those specified in Part VI of the Second Schedule to this Act.

(2) Nothing in this section shall impose any liability on the owner or occupier of any land within the navigation to pay a rate in respect of any buoy, pillar, post or mooring laid or placed on his land in so far as it is not hired out or let for profit or reward.

Liability for
payment of
rates.

67.—(1) The rates and rents authorised by section 63 (Rates and rents on goods) of this Act shall be payable by the owner of the goods in respect of which the rate is demanded.

(2) The rates authorised by section 64 (Navigation rates on vessels), section 65 (Quay rates on vessels) and section 66 (Mooring rates) of this Act shall be payable by the master of the vessel in respect of which the rate is demanded.

68.—(1) The Commissioners may (so far as the rates, rents and charges specified in Parts I to VI of the Second Schedule to this Act do not extend) demand and take such reasonable rates as they may from time to time determine for the use of any sheds, buildings, yards, quays, slipways or embankments, weighing machines, cranes, works and conveniences (other than buoys, pillars, posts or moorings) belonging to or provided by the Commissioners or in respect of any services rendered by them in connection with the navigation.

PART V
—cont.

Rates for
services and
accommoda-
tion not
otherwise
provided for.

(2) The rates authorised by subsection (1) of this section shall be payable by the owner of the goods or other articles dealt with or by the master of any vessel using or applying for the use of such plant, appliances, conveniences or services or from any other person who may so apply.

69. The Commissioners may confer, vary or extinguish exemptions from and compound with any person with respect to the payment of the rates, rents and charges which the Commissioners are from time to time authorised to demand and take but so that no preference be in any case given to any person over any other person under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Act.

Power to
vary
exemptions
and compound
for rates.

70. The collector of rates may receive by way of deposit and on account of the rates or dues to which any vessel or cargo may be liable such a sum of money as shall in his opinion be sufficient to cover the amount thereof.

Authorising
deposit on
account of
rates.

71. In addition to the remedy given by section 44 of the Harbours Clauses Act, 1847, and whether the demand made by that section has been made or not the Commissioners may recover any rates, rents and charges which by this Act they are authorised to demand and take or any arrears of rates, rents and charges payable to them under any enactment repealed by this Act as a debt in any court of competent jurisdiction.

Recovery of
rates.

PART VI

MISCELLANEOUS

72. The Commissioners may by agreement acquire (whether by purchase, lease or exchange) and hold any land which in their opinion it is desirable that they should acquire for or in connection with any of the purposes of their undertaking.

Power to
purchase lands
by agreement.

PART VI
—cont.Power to
dispose of
lands.

73. The Commissioners may dispose of any land (or any estate or interest therein) for the time being vested in them which may not be required by them in such manner (whether by way of sale, exchange, lease, the creation of any easement, right or privilege or otherwise) for such period and upon such conditions and for such consideration as they may think fit:

Provided that the Commissioners shall not sell any land to which the provisions of sections 127 to 131 of the Lands Clauses Consolidation Act, 1845, apply otherwise than in accordance with those provisions so far as applicable.

Powers with
respect to
disposal of
wrecks.

74.—(1) In their application to the Commissioners sections 530 and 532 of the Merchant Shipping Act, 1894 (which confer powers on the Commissioners with respect to, and with respect to anything in or on, any vessel sunk, stranded or abandoned in such manner as to be an obstruction or danger to navigation in the navigation or in or near any approach thereto), shall have effect—

(a) subject to the provisions of the next following section;
and

(b) in relation to a vessel sunk, stranded or abandoned before, as well as after, the passing of this Act.

(2) Subject to subsection (3) of this section, and to any enactment for the time being in force limiting his liability, the Commissioners may recover as a simple contract debt from the owner of any vessel in relation to which they have exercised their powers under the said section 530, being a vessel sunk, stranded or abandoned after the passing of this Act, any expenses reasonably incurred by them under that section in relation to that vessel which are not reimbursed out of any proceeds of sale within the meaning of that section.

(3) Except in a case which is, in the opinion of the Commissioners, a case of emergency, subsection (2) of this section shall not apply in relation to any vessel unless, before exercising in relation to that vessel any of the powers conferred on them by the said section 530 other than the power of lighting and buoying, the Commissioners have given to the owner of the vessel not less than forty-eight hours' notice of their intention to do so; and if before the notice expires they receive from the owner counter-notice in writing that he desires to dispose of the vessel himself, and no direction is served in respect of the vessel under paragraph (b) of subsection (2) of the next following section, he shall be at liberty to do so, and the Commissioners shall not exercise the powers aforesaid in relation to that vessel until the expiration of seven days from the receipt of the counter-notice and of any

further continuous period thereafter during which the owner of the vessel proceeds with the disposal thereof with all reasonable diligence and in compliance with any directions for the prevention of interference with navigation which may be given to him by the Commissioners.

PART V
—cont.

(4) Notice under the last foregoing subsection to the owner of any vessel may be served by the Commissioners either by delivering it to him or by sending it to him by post in a registered letter addressed to him at his last known place of business or abode in the United Kingdom, or, if the owner or any such place of business or abode is not known to the Commissioners, by displaying the notice at the offices of the Commissioners for the period of its duration.

(5) In this section the expression “owner” in relation to any vessel means the person who was the owner of the vessel at the time of the sinking, stranding or abandoning thereof.

75.—(1) Without prejudice to section 741 of the Merchant Shipping Act, 1894 (which relates to the exemption from the provisions of that Act of vessels belonging to Her Majesty), as modified by any Order in Council made under section 80 of the Merchant Shipping Act, 1906, the powers conferred on the Commissioners by sections 530 and 532 of the said Act of 1894 shall not be exercisable—

Protection
of Crown
interests in
wrecks.

(a) in relation to any vessel sunk, stranded or abandoned by design by or under the orders of a person acting on behalf of Her Majesty or an officer or servant of the Crown acting in the course of his duty as such;

(b) except with the consent of the Admiralty, which may be given with or without such a direction as is referred to in paragraph (b) of the next following subsection, in relation to any vessel which is not excluded from the exercise of those powers by virtue of being a vessel belonging to Her Majesty but which, at the time when the vessel was sunk, stranded or abandoned—

(i) had been required to be placed at the disposal of Her Majesty or of a government department; and

(ii) was appropriated to the service, under the direction and control of the Admiralty, of Her Majesty's ships of war.

(2) The Commissioners shall give notice in writing to the Admiralty and to the Minister of any decision of the Commissioners to exercise in relation to any vessel any of the powers aforesaid other than the power of lighting and buoying and, except

PART VI
—cont.

in a case which is in the opinion of the Commissioners a case of emergency, shall not proceed with the exercise thereof—

- (a) except with the consent of the Admiralty and the Minister, before the expiration of a period of fourteen days from the giving of the notice; or
- (b) if before the expiration of the said period there is served on the Commissioners a direction by the Admiralty or the Minister that those powers shall not be exercised in relation to that vessel except in such a case as aforesaid;

and where in any such case as aforesaid the Commissioners proceed to exercise those powers without the consent and before the expiration of the period mentioned in paragraph (a) of this subsection or after a direction has been served on them as aforesaid, they shall not in the exercise of those powers use any explosives and, if before the expiration of the period aforesaid such a direction as aforesaid is served on them, shall not be entitled to exercise the power of sale conferred by the said section 530 or the power conferred by subsection (2) of the last foregoing section:

Provided that—

- (i) the Commissioners shall not be required to give notice under this subsection in respect of any vessel in respect of which they have received a consent under paragraph (b) of the foregoing subsection, but any direction such as is referred to in paragraph (b) of this subsection accompanying that consent shall be deemed for the purposes of this subsection and of subsection (3) of the last foregoing section to have been duly served under paragraph (b) of this subsection;
- (ii) the prohibition on the use of explosives imposed by this section shall not apply to the use for cutting away the superstructure of a vessel of such small explosive charges as may for the time being be approved by the Minister for the purposes of this proviso.

(3) Without prejudice to the power of sale conferred on the Commissioners by the said section 530, the Commissioners shall hold and dispose of any wreck within the meaning of Part IX of the said Act of 1894 raised, removed or recovered under that section, and any surplus proceeds of sale within the meaning of that section, in accordance with such directions, if any, as may be given to them by the receiver of wreck; and on exercising the said power of sale in the case of any property the Commissioners shall discharge any sums payable in respect of that property by way of duties of customs or excise, purchase tax, or surcharge in

respect of sugar or molasses, and any sums so discharged shall be deemed to be expenses incurred by the Commissioners under that section.

PART VI
—cont.

(4) Any limitation on the powers of the Commissioners in relation to any vessel arising by virtue of subsection (1) or subsection (2) of this section shall not operate to authorise the exercise in relation to that vessel of the powers conferred on the Trinity House by section 531 of the said Act of 1894.

76. If at any time the Minister deems it expedient to order a survey and examination of any work constructed by the Commissioners under the powers of this Act which shall be on, under or over tidal waters or tidal lands below the level of mean high-water springs or of the site upon which it is proposed to construct any such work the Commissioners shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Commissioners to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Survey of
works by
Minister.

77. Nothing in this Act shall authorise the execution of any works on, over or under tidal lands below the level of mean high-water springs except in accordance with plans and sections approved by the Minister and subject to such conditions and restrictions as the Minister may prescribe before such work is begun.

Works below
high-water
mark.

78. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred upon him or the giving of any consent or approval under this Act and subsections (2) to (5) of section 290 (Powers of government departments to direct inquiries) of the Local Government Act, 1933, shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Commissioners were a local authority.

Inquiries by
Minister.

79.—(1) Save as otherwise expressly provided by any enactment from time to time relating to the Commissioners all offences against any such enactment and all penalties or forfeitures imposed or recoverable thereunder or under any byelaw made thereunder or by virtue thereof may be prosecuted and recovered in a summary manner.

Recovery of
penalties, etc

PART VI
—cont.

(2) Any costs or expenses recoverable as aforesaid may be recovered summarily as civil debts where the amount recoverable does not exceed twenty pounds.

Directions
of harbour
master.

80. Section 52 of the Harbours Clauses Act, 1847, in its application to the Commissioners and the harbour master shall extend to empower the harbour master to give directions prohibiting the mooring of vessels in any particular part or parts of the navigation.

Orders of
harbour
master need
not be in
writing.

81. Section 53 of the Harbours Clauses Act, 1847, in its application to the Commissioners and the harbour master shall not be construed to require the harbour master to serve a notice in writing of his directions upon the master of a vessel but such directions may be given orally or otherwise communicated to such master but a notice that is not in writing shall not be deemed to be sufficient unless in the opinion of the court before whom any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel.

Harbour
master to be
notified
before
arrival of
certain
vessels.

82.—(1) The master of every vessel to which this section applies shall either himself or through his shipping agents or the intended consignor or consignee of any cargo give to the harbour master as soon as reasonably practicable notice of the estimated time of arrival of the vessel within the navigation and the vessel shall not proceed up river to its destination if the harbour master shall on account of there being no berth available direct otherwise.

(2) This section applies to vessels of fifty or more registered tons used for the carriage of goods and proceeding from Dartmouth Harbour to Totnes for the purpose of shipping, unshipping or transshipping any goods.

Officers
exempt
from rates.

83. Officers of the Ministry of Aviation and the Ministry of Transport, officers of Customs and Excise, British sea fishery officers and police officers acting in the execution of their duty shall at all times have free ingress, passage and egress to, along and from the navigation without payment.

Abatement of
work
abandoned
or decayed.

84.—(1) Where any work constructed by the Commissioners and situate wholly or partially on, under or over tidal waters or tidal lands below the level of mean high-water springs is abandoned or suffered to fall into decay the Minister may by notice in writing either require the Commissioners at their own expense to repair and restore such part of such work as is situate below the level of mean high-water springs, or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Minister may think proper.

(2) Where any part of any such work which has been so abandoned or suffered to fall into decay is situate above the level of mean high-water springs and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Minister may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Commissioners they have failed to comply with such notice the Minister may execute the works required to be done by the notice at the expense of the Commissioners and the amount of such expense shall be a debt due from the Commissioners to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

85. For the protection of the British Transport Commission (in this section referred to as “the commission”) the following provisions shall unless otherwise agreed in writing between the Commissioners and the commission apply and have effect:—

For protection
of British
Transport
Commission.

(1) In this section—

“railway property” means any railway of the commission and any bridge or other works connected therewith for the maintenance or operation of which the commission are responsible and includes any lands held or used by the commission for the purposes of such railway or works;

“the engineer” means an engineer to be appointed by the commission:

(2) In the event of the Commissioners intending to exercise the powers of section 33 (Maintenance and improvement of navigation) or section 35 (Power to dredge, etc.) of this Act under or within fifty feet from railway property the Commissioners shall before exercising such powers furnish to the commission proper and sufficient plans, sections, drawings and particulars thereof for the approval of the engineer and shall not exercise the said powers until such plans, sections, drawings and particulars shall have been approved by the engineer or in case of difference between the engineer and the Commissioners until they have been settled by arbitration:

Provided that—

(a) the approval of the engineer shall not be unreasonably withheld;

PART VI
—cont.

(b) if within twenty-eight days after such plans, sections, drawings and particulars have been furnished to the commission the engineer shall not have intimated his approval or disapproval thereof he shall be deemed to have approved them:

- (3) Upon signifying his approval or disapproval of the plans, sections, drawings and particulars the engineer may specify any temporary or permanent works which should be carried out in order reasonably to ensure the stability of railway property or to protect it from injury and such temporary or permanent works as may be reasonably necessary for those purposes shall be constructed by the Commissioners by arrangement with and under the supervision if given of the engineer or at the option of the commission by the commission and the cost of constructing such protective works and the commuted sum representing the cost of maintaining any such works of a permanent nature shall be paid by the Commissioners:
- (4) The Commissioners shall be responsible for and make good to the commission all costs, charges, damages and expenses occasioned to the commission by reason of the exercise of the powers of the said sections 33 or 35 causing damage to or injuriously affecting railway property and the fact that any work or thing may have been done by the Commissioners in accordance with plans, sections, drawings or particulars approved by the engineer shall not excuse the Commissioners from any liability under the provisions hereof:
- (5) Any dispute or difference arising between the Commissioners and the commission under this section shall be referred to and determined by a single arbitrator to be agreed between the parties or failing agreement to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

For protection
of Devon
River Board
and
Dartmouth
Harbour
Commis-
sioners.

86. Notwithstanding anything in this Act, the following provisions for the protection of the river board and the harbour commissioners shall, unless otherwise agreed in writing between the Commissioners and the river board and the harbour commissioners, apply and have effect:—

- (1) In this section unless the context otherwise requires—
“ authorised work ” means—

(a) any work constructed or building or apparatus erected under section 33 (Maintenance and improvement of navigation) of this Act in so much of the

navigation as lies between the northern limit of Dartmouth Harbour and Totnes Bridge; or

(b) any work of deepening, widening, improving, dredging, scouring or excavating the said part of the navigation carried out under section 35 (Power to dredge, etc.) of this Act not being a work carried out within the navigable channel ;

“ the harbour commissioners ” means the Dartmouth Harbour Commissioners;

“ plans ” includes sections and (when reasonably required by the river board) working drawings:

(2) The Commissioners shall not except with the consent of the river board exercise the powers conferred on them by the said section 33 or the said section 35 of this Act in so much of the navigation as lies between Totnes Weir and Totnes Bridge:

(3) (a) The Commissioners shall before commencing to construct an authorised work submit to the river board for their reasonable approval plans thereof. If the river board do not within twenty-eight days after the submission to them of any such plans signify to the Commissioners in writing their approval or disapproval thereof they shall be deemed to have approved thereof;

(b) No authorised work shall be constructed otherwise than in accordance with such plans as may have been approved (or deemed to have been approved) by the river board or if such approval be withheld as may be settled by arbitration and any such work shall be executed to the reasonable satisfaction of the river board:

Provided that if there shall be any inconsistency between any plans approved or deemed to be approved by the river board or settled by arbitration under the provisions of this section and the plans approved by the Minister under section 77 (Works below high-water mark) of this Act the authorised work shall be constructed in accordance with the plans approved by the Minister:

(4) Nothing in the said section 33 or the said section 35 of this Act shall authorise the Commissioners to construct any works in, or to carry out works of deepening, widening, improving, dredging, scouring or excavating the navigation which will interfere with the works or

PART VI
—cont.

property vested in or under the control of the harbour commissioners in such manner as to affect injuriously the said works or property or the use thereof:

- (5) The Commissioners shall at all reasonable times afford to the engineer of the river board or his duly authorised representative and to the harbour commissioners or their duly authorised representative access to an authorised work for the purpose of inspection:
- (6) No sand, mud, stone or other materials dredged up or removed pursuant to the said section 35 of this Act which has not been sold or otherwise disposed of by the Commissioners shall be deposited in the river on or below the level of mean high-water springs nor in any other place except with the consent of the river board and the harbour commissioners, but such consent shall not be unreasonably withheld:
- (7) Before using any explosive substance for the purpose of blowing up a vessel in pursuance of the powers in that behalf conferred by section 74 (Powers with respect to disposal of wrecks) of this Act the Commissioners shall consult with the river board and no such substance shall be used except with the consent of the river board which is not to be unreasonably withheld:
- (8) If as a result of the execution of an authorised work any subsidence or other injury affecting the interests of the river board shall be caused or done in or to the river or the banks thereof, or to the outfall of any other watercourse under their jurisdiction, the same shall be reinstated, repaired and made good by the Commissioners to the reasonable satisfaction of the river board:
- (9) The Commissioners shall at all times keep the river board indemnified against all damages, losses, costs and expenses which they may sustain or be liable for or reasonably and properly incur by reason or in consequence of any injury or damage which may be caused or may result to any works belonging to or under the jurisdiction of the river board by or as a direct consequence of the construction of an authorised work or in the exercise of any powers conferred by this Act:

Provided that the river board shall give to the Commissioners notice of any claim or demand made against them which, in the opinion of the river board, is a claim or demand for which the Commissioners may be

liable under this subsection and no settlement or compromise of any such claim or demand shall be made without the consent in writing of the Commissioners:

- (10) Except as provided in the proviso to sub-paragraph (b) of paragraph (3) of this section, any question, dispute or difference which may arise under this section (other than a question, dispute, or difference as to the construction of this section) shall be referred to and determined by a single arbitrator to be agreed between the parties or, failing agreement, appointed by the President of the Institution of Civil Engineers on the application of a party to the dispute (after notice in writing to the others) and subject as aforesaid the provisions of the Arbitration Act, 1950, shall apply to the reference and determination.

87. Nothing in the provisions of this Act or any instrument made thereunder shall prejudice any estate, right, power, privilege or exemption of the Crown, and in particular no such provision shall authorise the Commissioners without the prior consent in writing of the Crown Estate Commissioners to take, use or in any manner interfere with any portion of the shore or bed of the sea or of the navigation or any property or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the said commissioners. Crown rights.

88. In particular and without prejudice to the general law concerning the applicability of statutes to the Duchy of Cornwall, nothing contained in this Act shall extend to authorise the Commissioners to take, enter upon or interfere with any land (including land covered by water) or water or take away or affect any rights, powers, privileges or authorities belonging to or enjoyed by Her Majesty in right of the Duchy of Cornwall, or to or by the Duke of Cornwall for the time being without the consent in writing of some two or more of such of the regular officers of the said duchy or of such other persons as may be duly authorised under section 39 of the Duchy of Cornwall Management Act, 1863, to exercise all or any of the said rights, powers, privileges and authorities by the said Act made exercisable or otherwise for the time being exercisable in relation to the said duchy or as the case may be the consent of the said duke testified in writing under the seal of the Duchy of Cornwall first had and obtained. Saving the rights of the Duchy of Cornwall.

89. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

PART VI
—cont.

Reservation
of jurisdiction
of Trinity
House.

90. Nothing in this Act contained shall prejudice or affect the rights or jurisdiction of the Corporation of Trinity House, of Deptford Strond, in respect of pilotage or of any lights, buoys or beacons, or any other matter of which they have the management or control.

Local
lighthouse
authority.

91. The Commissioners shall within the limits of the navigation be a local lighthouse authority for the purposes of the Merchant Shipping Act, 1894.

Exemption of
certain fishing
vessels from
rates and
charges.

92. Nothing in this Act shall authorise the Commissioners to demand or take any rates or charges under section 64 (Navigation rates on vessels) of this Act in respect of any vessel licensed by the river board to fish within the river.

Exemption of
Dittisham
Ferry.

93. Nothing in this Act shall authorise the Commissioners to demand or take any rates under section 63 (Rates and rents on goods) of this Act in respect of the ferry operating between Dittisham and Greenaway.

Repeal of
Act of 1834.

94. The Act of 1834 is hereby repealed.

Costs of Act.

95. All costs, charges and expenses of and incident to the preparing and obtaining of this Act and otherwise incurred in reference thereto shall be paid by the Commissioners.

SCHEDULES

FIRST SCHEDULE

FORM A

RIVER DART NAVIGATION

NOMINATION OF COMMERCIAL MEMBER

We A.B. [here insert name and designation] and B.C. [here insert name and designation] hereby nominate [here insert name and designation of candidate] for election as a commercial member.

Given under our hands this day of , 19 .

Elector.

Elector.

And I the said hereby sanction and approve
of the said nomination.

Candidate.

To the clerk to the River Dart Navigation Commissioners.

DIRECTIONS FOR SIGNING

This nomination shall be signed by two electors of the commercial members and the candidate and delivered to the returning officer fourteen days at least prior to the day of , 19 , being the day of election.

Each candidate must be nominated by a separate nomination paper.

The nomination paper shall be signed in case of a partnership by one of the partners in the partnership name and in the case of a body corporate by the secretary or clerk of the body.

1ST SCH.
—cont.

FORM B

RIVER DART NAVIGATION

Election of three commercial members on the day of
19 .

VOTING PAPER

Number of voting paper	Name and address of voter	Number of votes
Names and addresses of candidates		Column for voter's cross

I or we (as the case may be) vote for the persons in the list against whose names I (or we) have placed a cross.

(Signed).....

Signature of witness.....

Address of witness.....

.....

DIRECTIONS FOR VOTING

The voter shall place a X against the names of the candidates for whom he votes in the column for that purpose and shall sign the voting paper in the presence of a witness who must affix his signature and address in verification of the signature of the voter.

The voter can only vote once at each election of the commercial members.

1ST SCH.
—cont.

The cross placed against the names of the three candidates voted for will entitle each of them to the number of votes specified in the above voting paper.

The voting paper must be delivered by post or otherwise to the returning officer in a sealed envelope addressed to him so that the same shall be received by him at the principal office of the Commissioners not later than the day before the day of election and must be entire.

In case of a partnership the voting paper is to be signed by one of the partners in the partnership name and in the case of a body corporate the voting paper shall be signed by the secretary or clerk of the body.

FORM C

RIVER DART NAVIGATION

NOMINATION OF PASSENGER MEMBER

We A.B. [here insert name and designation] and B.C. [here insert name and designation] hereby nominate [here insert name and designation of candidate] for election as a passenger member.

Given under our hands this day of , 19 .

Elector.

Elector.

And I the said hereby sanction and approve
of the said nomination.

Candidate.

To the clerk to the River Dart Navigation Commissioners.

DIRECTIONS FOR SIGNING

The nominations shall be signed by two electors of the passenger members and the candidate and delivered to the returning officer fourteen days at least prior to the day of , 19 , being the day of election.

Each candidate must be nominated by a separate nomination paper. The nomination paper shall be signed in case of a partnership by one of the partners in the partnership name and in the case of a body corporate by the secretary or clerk of the body.

1ST SCH.
—cont.

FORM D

RIVER DART NAVIGATION

Election of three passenger members on the day of , 19 .

VOTING PAPER

Number of voting paper	Name and address of voter	Number of votes
Names and addresses of candidates		Column for voter's cross

I or we (as the case may be) vote for the persons in the list against whose names I (or we) have placed a cross.

(Signed).....

Signature of witness.....

Address of witness.....

.....

DIRECTIONS FOR VOTING

The voter shall place a X against the names of the three candidates for whom he votes in the column for that purpose and shall sign the voting paper in the presence of a witness who must affix his signature and address in verification of the signature of the voter.

The voter can only vote once at each election of the passenger members.

1ST SCH.
—cont.

The cross placed against the names of the three candidates voted for will entitle each of them to the number of votes specified in the above voting paper.

The voting paper must be delivered by post or otherwise to the returning officer in a sealed envelope addressed to him so that the same shall be received by him at the principal office of the Commissioners not later than the day before the day of election and must be entire.

In case of a partnership the voting paper is to be signed by one of the partners in the partnership name and in the case of a body corporate the voting paper shall be signed by the secretary or clerk of the body.

FORM E

RIVER DART NAVIGATION

NOMINATION OF FRONTAGE MEMBER

We A.B. [here insert name and designation] and B.C. [here insert name and designation] hereby nominate [here insert name and designation of candidate] for election as a frontage member.

Given under our hands this day of , 19 .

Elector.

Elector.

And I the said hereby sanction and approve
of the said nomination.

Candidate.

To the clerk to the River Dart Navigation Commissioners.

DIRECTIONS FOR SIGNING

The nomination shall be signed by two electors of the frontage members and the candidate and delivered to the returning officer fourteen days at least prior to the day of , 19 , being the day of election.

Each candidate must be nominated by a separate nomination paper.

The nomination paper shall be signed in case of a partnership by one of the partners in the partnership and in the case of a body corporate by the secretary or clerk of the body.

1ST SCH.
—*cont.*

FORM F

RIVER DART NAVIGATION

Election of two frontage members on the day of , 19 .

VOTING PAPER

Number of voting paper	Name and address of voter	Number of votes
Names and addresses of candidates		Column for voter's cross

I or we (as the case may be) vote for the persons in the list against whose names I (or we) have placed a cross.

(Signed).....

Signature of witness.....

Address of witness.....

.....

DIRECTIONS FOR VOTING

The voter shall place a X against the names of two candidates for whom he votes in the column for that purpose and shall sign the voting paper in the presence of a witness who must affix his signature and address in verification of the signature of the voter.

The voter can only vote once at each election, of the frontage members.

1ST SCH
—cont.

The cross placed against the names of the two candidates voted for will entitle each of them to the number of votes specified in the above voting paper.

The voting paper must be delivered by post or otherwise to the returning officer in a sealed envelope addressed to him so that the same shall be received by him at the principal office of the Commissioners not later than the day before the day of election and must be entire.

In the case of a partnership the voting paper is to be signed by one of the partners in the partnership name and in the case of a body corporate the voting paper shall be signed by the secretary or clerk of the body.

FORM G

RIVER DART NAVIGATION

NOMINATION OF BOATING MEMBER

We A.B. [here insert name and designation] and B.C. [here insert name and designation] hereby nominate [here insert name and designation of candidate] for election as a boating member.

Given under our hands this day of , 19 .

Elector.

Elector.

And I the said _____ hereby give sanction and approve of the said nomination.

Candidate.

To the clerk to the River Dart Navigation Commissioners.

DIRECTIONS FOR SIGNING

The nomination shall be signed by two electors of the boating members and the candidate and delivered to the returning officer fourteen days at least prior to the day of , 19 , being the day of election.

Each candidate must be nominated by a separate nomination paper.

1ST SCH
—cont.

FORM H

RIVER DART NAVIGATION

Election of two boating members on the day of
19 .

VOTING PAPER

Number of voting paper	Name and address of voter
Names and addresses of candidates	Column for voter's cross

I vote for the persons in the list against whose names I have placed a cross.

(Signed).....

DIRECTIONS FOR VOTING

The voter shall place a X against the names of not more than two candidates for whom he votes in the column for that purpose and shall sign the voting paper.

The voter can only vote once at each election.

The voting paper must be placed in the ballot box provided.

SECOND SCHEDULE

PART I

RATES IN RESPECT OF GOODS SHIPPED, UNSHIPPED OR TRANSHIPPED
WITHIN THE NAVIGATION

								s.	d.
Animals, live:									
Bulls, cows and oxen	...	...	...	...	each	2	0		
Calves, lambs, sheep	...	...	...	...	each	0	6		
Horses	...	...	...	...	each	2	0		
Fish	...	...	...	...	per ton	4	0		
Furniture, any type	...	...	...	...	per ton	4	0		
Fruit, whatever nature, packed	...	...	...	...	per ton	4	0		
Wool, bales of	...	...	...	...	per ton	4	0		
Machinery, including motor cars	...	...	...	...	per ton	4	0		
Manufactured wood products and plastics	...	...	...	...	per ton	2	0		
Beer	...	...	...	...	per ton	2	0		
Packed merchandise	...	...	...	...	per ton	2	0		
Slate (roofing or similar material)	...	...	...	...	per ton	2	0		
Gravel or sand	...	...	...	...	per ton	0	6		
Oils, refined	...	...	...	...	per ton	2	0		
Bricks	...	...	...	...	per ton	2	0		
Cement	...	...	...	...	per ton	2	0		
Fruit, whatever nature, in bulk	...	...	...	...	per ton	1	0		
Iron (manufactured or in iron bars or rods)	...	...	...	...	per ton	3	0		
Lime in bags	...	...	...	...	per ton	1	0		
Pipes, earthenware	...	...	...	...	per ton	2	0		
Potatoes	...	...	...	...	per ton	1	0		
Stone (including granite) in slabs or blocks	...	...	...	...	per ton	1	0		
Timber, sawn or logs	...	...	...	...	per ton	2	0		
Wood pulp, raw	...	...	...	...	per ton	2	0		
Agricultural produce, manures and feeding stuffs	...	...	...	...	per ton	2	0		
Cyder	...	...	...	...	per ton	2	0		
Stone, rough	...	...	...	...	per ton	1	6		
Reed	...	...	...	...	per ton	6	0		

CONDITIONS

1. For all goods not specified in this part of this schedule sums may be charged equal to the rates payable in respect of goods specified therein which in the judgment of the Commissioners are as nearly as may be of like nature, package and quantity.

2. In charging the rates on goods the gross weight or measurement of all goods shall be taken. Fractional parts of any weight, measure, number or value shall be charged proportionately and the minimum charge for a single package shall be one shilling.

2ND SCH.
—cont.

3. A manifest of the contents and quantities of each vessel shall be delivered by the owner, master or other duly authorised person to the office of the Commissioners—

- (a) in the case of a vessel loading, before the departure of the vessel, and
- (b) in the case of a vessel discharging, as soon as practicable after the arrival of the vessel.

4. Rates shall be paid on goods imported immediately after the goods are unshipped or transhipped and before they are removed from the navigation and on goods exported before they are shipped.

PART II

QUAY AND SHED RENTS

QUAY AND SHED RENTS PAYABLE IN RESPECT OF GOODS NOT REMOVED
WITHIN SEVENTY-TWO HOURS

Such quay and shed rents as the Commissioners with the consent of the Minister shall appoint.

PART III

RATES IN RESPECT OF VESSELS OTHER THAN THOSE TO WHICH PART IV
OF THIS SCHEDULE APPLIES

(a) Tonnage rates—

For every commercial vessel entering the navigation—

8d. per register ton.

(b) Vessels remaining in the navigation more than thirty days—

For every week or part of a week during which a vessel (not being a vessel in respect of which rates are paid under Part VI of this schedule or to which head (c), (d), (e) or (f) of this Part of this schedule applies) remains in the navigation after the expiration of thirty days from the date of entry (in addition to the rates mentioned in head (a) of this Part of this schedule)—

1d. per register ton.

(c) Vessels used for the carriage of cargo in the navigation—

For every year or part of a year during which a vessel which when in use is used wholly or mainly for conveying animals or goods from one part of the navigation to another part including Dartmouth Harbour (in addition to the rates mentioned in head (a) of this Part of this schedule when applicable)—

			£	s.	d.
Vessels of under 100 feet in length	...	...	5	0	0
Vessels of 100 feet and under 200 feet in length	...	...	6	10	0
Vessels of over 200 feet in length	...	...	8	0	0

(d) Laid-up vessels—

2ND SCH.
—cont.

For every year or part of a year during which a laid-up vessel remains in the navigation (in addition to the rates mentioned in head (a) of this Part of this schedule when applicable)—

£10 0 0 or
1d. per register ton
whichever is the greater.

For every week or part of a week (in addition to the rates mentioned in head (a) of this Part of this schedule when applicable)—

£1 0 0

(e) Floating docks—

For every year or part of a year during which a floating dock remains in the navigation (in addition to the rates mentioned in head (a) of this Part of this schedule when applicable)—

£15 0 0

(f) Vessels built within the navigation—

For every week or part of a week during which a vessel built within the navigation remains therein after completion of basin trials—

$\frac{1}{2}$ d. per register ton.

(g) Hover vehicles—

For every hover vehicle entering the navigation such reasonable rates as may be approved by the Minister.

(Minimum charge 5s. 0d.)

CONDITION

Nothing herein is to be deemed to restrict the power of the Commissioners to refuse the right of any vessel to moor or stay in the navigation.

PART IV

RATES IN RESPECT OF PASSENGER VESSELS AND BOATS OR VESSELS USED
FOR HIRE OR REWARD

(a) Vessels used to carry passengers for hire or reward entering or using the navigation.

For every vessel not used for the carriage of cargo but used to carry passengers for hire or reward entering the navigation—

Either

(i) licensed passenger capacity				Per day			Per annum		
				£	s.	d.	£	s.	d.
Not exceeding 12	...	...	...		7	6	10	0	0
Not exceeding 50	...	...	...	1	10	0	25	0	0
Not exceeding 75	...	...	...	2	5	0	37	10	0
Not exceeding 100	...	...	...	3	0	0	50	0	0
Not exceeding 150	...	...	...	4	10	0	75	0	0
Not exceeding 200	...	...	...	6	0	0	100	0	0
Not exceeding 250	...	...	...	7	10	0	125	0	0
Not exceeding 300	...	...	...	9	0	0	150	0	0
Not exceeding 400	...	...	...	12	0	0	200	0	0
Not exceeding 500	...	...	...	15	0	0	250	0	0
Exceeding 500	...	...	...	16	10	0	300	0	0

or

2ND SCH.
—cont.

(ii) a rate of three pence per passenger for each single trip:

Provided that the owner of any vessel to which this paragraph applies may elect which of the said rates specified in subparagraphs (i) and (ii) he shall pay.

For the purposes of this paragraph a single trip means a passage by any such vessel up or down stream over any length of the navigation without turning the vessel around.

(b) Boats or vessels normally kept within the navigation and used for hire or reward excluding licensed passenger vessels—

For every year up to 20 feet—£1. 2s. for each extra foot.

(c) Vessels based and used for towing within the navigation—

For each year or part of a year during which a vessel is used for towing within the navigation—

£5 0 0

(d) Vessels not based but used for towing per trip—

4d. per register ton.

(Minimum 7s. 6d.)

PART V

QUAY RATES ON VESSELS

For every week or part of a week during which a vessel exceeding 20 gross tons lies alongside any quay within the navigation—

£1 0 0

CONDITION

Vessels scrubbing whilst lying alongside any quay shall pay rate and a half.

PART VI

RATES PAYABLE IN RESPECT OF BUOYS, PILLARS, POSTS AND MOORINGS

Rates for the use of any buoys, pillars, posts and moorings—

Yachts or boats (Powered and/or sail) (Thames measurement)	Annual rate £ s. d.
Mechanically powered vessels less than 10 hundredweight or under 12 feet in length and other vessels less than 1 ton or under 14 feet in length	Nil
Mechanically powered vessels not less than 12 feet in length or 10 hundredweight and over and other vessels not less than 14 feet in length or 1 ton and over but in any case not exceeding 3 tons	2 5 0
Exceeding 3 tons but not exceeding 6 tons	3 15 0
Exceeding 6 tons but not exceeding 10 tons	6 0 0
Exceeding 10 tons but not exceeding 15 tons	9 0 0
Exceeding 15 tons but not exceeding 25 tons	12 0 0
Exceeding 25 tons but not exceeding 35 tons	15 0 0
Exceeding 35 tons but not exceeding 50 tons	22 10 0

Vessels	Daily rate			2ND SCH —cont.
	£	s.	d.	
Exceeding 50 register tons but not exceeding 100 register tons	4	6		
Exceeding 100 register tons but not exceeding 200 register tons	6	0		
Exceeding 200 register tons but not exceeding 400 register tons	7	6		
Exceeding 400 register tons but not exceeding 600 register tons	9	0		
Exceeding 600 register tons	15	0		

Table of Statutes referred to in this Act

Title or short title	Session and chapter
An Act for deepening, extending, and improving the Navigation of the River Dart from Totnes Bridge to Langham Wood Point in the County of Devon	4 & 5 Will. 4 c. li.
Lands Clauses Consolidation Act, 1845	8 & 9 Vict. c. 18.
Commissioners Clauses Act, 1847	10 & 11 Vict. c. 16.
Harbours, Docks and Piers Clauses Act, 1847	10 & 11 Vict. c. 27.
Duchy of Cornwall Management Act, 1863	26 & 27 Vict. c. 49.
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Merchant Shipping Act, 1906	9 Edw. 7 c. 48.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Borrowing (Control and Guarantees) Act, 1946	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act, 1947	10 & 11 Geo. 6 c. 51.
Companies Act, 1948	11 & 12 Geo. 6 c. 38.
Arbitration Act, 1950	14 Geo. 6 c. 27.
Rivers (Prevention of Pollution) Act, 1951	14 & 15 Geo. 6 c. 64.
Dartmouth Harbour Act, 1951	14 & 15 Geo. 6 c. xxxiii.
Post Office Act, 1953	1 & 2 Eliz. 2 c. 36.
Transport Charges, &c. (Miscellaneous Provisions) Act, 1954	2 & 3 Eliz. 2 c. 64.
Mental Health Act, 1959	7 & 8 Eliz. 2 c. 72.
Land Compensation Act, 1961	9 & 10 Eliz. 2 c. 33.
Rivers (Prevention of Pollution) Act, 1961	9 & 10 Eliz. 2 c. 50.

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ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Incorporation of Acts.
4. Interpretation.

PART II

CONSTITUTION, APPOINTMENT AND ELECTION OF COMMISSIONERS

5. Present commissioners continued in office.
6. Constitution of Commissioners.
7. Commissioners incorporated.
8. Property to continue vested in Commissioners.
9. Existing deeds, contracts, etc., to remain in force.
10. Appointed Commissioners.
11. Election of commercial, passenger, frontage and boating members.
12. Qualification of commercial, passenger, frontage and boating members.
13. Disqualification of Commissioners.
14. Qualification of electors of commercial members, passenger members, frontage members and boating members.
15. Registers.
16. Custody of registers.
17. Lists of electors of commercial members, passenger members and frontage members to be made out.
18. Revision of lists of electors of commercial members, passenger members and frontage members.

Section

19. Commissioners to produce books, etc., to reviser.
20. Evidence of revised list.
21. Continuance of revised lists.
22. Revised lists to be conclusive evidence of right to vote.
23. Printing and sale of revised lists.
24. Election of commercial members, passenger members and frontage members.
25. Election of boating members.
26. Filling up of extraordinary vacancies.
27. Errors in elections, etc., not to vitiate acts of Commissioners.
28. Meetings of Commissioners.
29. Expenses of revision of lists and elections.
30. Special meetings of Commissioners.
31. Where day for any proceeding falls on Sunday, etc., proceeding to be taken on next day.

PART III

LIMITS OF NAVIGATION AND POWERS OF
COMMISSIONERS

32. Limits of navigation.
33. Maintenance and improvement of navigation.
34. Power to purchase dredgers, etc.
35. Power to dredge, etc.
36. Byelaws.
37. Powers as to moorings.
38. As to houseboats.
39. Appeals under last preceding section.
40. Commencement of section 38 of this Act.
41. Compensation for loss under section 38 of Act.
42. Power to provide dwellings for officers, etc.
43. Power to lease undertaking or rates.

PART IV

FINANCIAL

44. Security for existing liabilities.
45. Power to borrow.
46. Reborrowing.
47. Mode of payment off of money borrowed.
48. Protection of lender from inquiry.
49. Saving for powers of Treasury.
50. Appointment of a receiver.
51. Application of revenue.

Section

- 52. Reserve fund.
- 53. Sinking fund.
- 54. Adjustments to sinking fund.
- 55. Return to Minister.
- 56. Power to local authorities to give financial assistance to Commissioners.
- 57. Annual statement to be printed.
- 58. Annual account to be sent to Minister.
- 59. Auditor.
- 60. Proceeds of sale of lands to be treated as capital.
- 61. Subscriptions to associations and other expenses.
- 62. Power to make superannuation and other allowances.

PART V

RATES AND CHARGES

- 63. Rates and rents on goods.
- 64. Navigation rates on vessels.
- 65. Quay rates on vessels.
- 66. Mooring rates.
- 67. Liability for payment of rates.
- 68. Rates for services and accommodation not otherwise provided for.
- 69. Power to vary exemptions and compound for rates.
- 70. Authorising deposit on account of rates.
- 71. Recovery of rates.

PART VI

MISCELLANEOUS

- 72. Power to purchase lands by agreement.
- 73. Power to dispose of lands.
- 74. Powers with respect to disposal of wrecks.
- 75. Protection of Crown interests in wrecks.
- 76. Survey of works by Minister.
- 77. Works below high-water mark.
- 78. Inquiries by Minister.
- 79. Recovery of penalties, etc.
- 80. Directions of harbour master.
- 81. Orders of harbour master need not be in writing.
- 82. Harbour master to be notified before arrival of certain vessels.
- 83. Officers exempt from rates.
- 84. Abatement of work abandoned or decayed.

Section

85. For protection of British Transport Commission.
86. For protection of Devon River Board and Dartmouth Harbour Commissioners.
87. Crown rights.
88. Saving the rights of the Duchy of Cornwall.
89. Saving for town and country planning.
90. Reservation of jurisdiction of Trinity House.
91. Local lighthouse authority.
92. Exemption of certain fishing vessels from rates and charges.
93. Exemption of Dittisham Ferry.
94. Repeal of Act of 1834.
95. Costs of Act.

SCHEDULES:

First Schedule.

Second Schedule—

Part I—Rates in respect of goods shipped, unshipped or transhipped within the navigation.

Part II—Quay and shed rents.

Part III—Rates in respect of vessels other than those to which Part IV of this schedule applies.

Part IV—Rates in respect of passenger vessels and boats or vessels used for hire or reward.

Part V—Quay rates on vessels.

Part VI—Rates payable in respect of buoys, pillars, posts and moorings.